

Temporary Protected Status: Calendar Year 2023 Annual Report

Report to Congress

Homeland Security

Assistant Secretary for Legislative Affairs
U.S. Department of Homeland Security
Washington, DC 20528



May 15, 2024

Foreword

I am pleased to present the "Temporary Protected Status: Calendar Year 2023 Annual Report" prepared by U.S. Citizenship and Immigration Services.

Pursuant to statutory requirements, this report is provided to the following Members of Congress:

The Honorable Jim Jordan
Chairman, House Committee on the Judiciary

The Honorable Jerrold Nadler
Ranking Member, House Committee on the Judiciary

The Honorable Richard Durbin
Chair, Senate Committee on the Judiciary

The Honorable Lindsey Graham
Ranking Member, Senate Committee on the Judiciary

Inquiries relating to this report may be directed to me at (202) 447-5890.

Respectfully,

Zephranie Buetow
Assistant Secretary for Legislative Affairs

Executive Summary

Under section 244 of the Immigration and Nationality Act (INA), 8 U.S.C. § 1254a, the Secretary of Homeland Security may designate a foreign state (or part thereof) for Temporary Protected Status (TPS) after consulting with appropriate agencies of the U.S. Government. The Secretary may then grant TPS to eligible nationals of that foreign state or eligible noncitizens having no nationality who last habitually resided in that state. Section 244(b)(1) of the INA provides the circumstances and criteria under which the Secretary may exercise his or her discretion to designate a foreign state for TPS.[1] In accordance with section 244(i)(1) of the INA, the Secretary submits this annual report to Congress on the operation of section 244 (the TPS statute) during the previous calendar year.

At the close of Calendar Year (CY) 2023, there were approximately 870,332 TPS beneficiaries.

During CY 2023, the Department of Homeland Security (DHS) announced the following TPS actions:

- On January 3, 2023, DHS announced via *Federal Register* notice (FRN) the extension of the TPS designation for Yemen and redesignation of Yemen for 18 months, effective March 4, 2023, through September 3, 2024.[2]

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[1] Section 244(b)(1) of the INA provides the following:

> The [Secretary of Homeland Security], after consultation with appropriate agencies of the Government, may designate any foreign state (or any part of such foreign state) under this subsection only if--
>
> (A) the [Secretary] finds that there is an ongoing armed conflict within the state and, due to such conflict, requiring the return of aliens who are nationals of that state to that state (or to the part of the state) would pose a serious threat to their personal safety;
>
> (B) the [Secretary] finds that--
>
> (i) there has been an earthquake, flood, drought, epidemic, or other environmental disaster in the state resulting in a substantial, but temporary, disruption of living conditions in the area affected,
>
> (ii) the foreign state is unable, temporarily, to handle adequately the return to the state of aliens who are nationals of the state, and
>
> (iii) the foreign state officially has requested designation under this subparagraph; or
>
> (C) the [Secretary] finds that there exist extraordinary and temporary conditions in the foreign state that prevent aliens who are nationals of the state from returning to the state in safety, unless the [Secretary] finds that permitting the aliens to remain temporarily in the United States is contrary to the national interest of the United States.
>
> A designation of a foreign state (or part of such foreign state) under this paragraph shall not become effective unless notice of the designation (including a statement of the findings under this paragraph and the effective date of the designation) is published in the *Federal Register*. In such notice, the [Secretary] shall also state an estimate of the number of nationals of the foreign state designated who are (or within the effective period of the designation are likely to become) eligible for temporary protected status under this section and their immigration status in the United States.

[2] *See* 88 FR 94 (January 03, 2023) (18-month extension of the TPS designation for Yemen and its redesignation through September 3, 2024).

- On January 26, 2023, DHS announced via FRN the extension of the TPS designation for Haiti and the redesignation of Haiti for 18 months, effective February 4, 2023, through August 3, 2024.[3]
- On March 13, 2023, DHS announced via FRN the extension of the TPS designation for Somalia and the redesignation of Somalia for 18 months, effective March 18, 2023, through, September 17, 2024.[4]
- On June 21, 2023, DHS announced via FRN the rescission of the 2018 termination of the TPS designation for El Salvador and the extension of the TPS designation for El Salvador, effective September 10, 2023, through March 9, 2025.[5]
- On June 21, 2023, DHS announced via FRN the rescission of the 2018 termination of the TPS designation for Honduras and the extension of the TPS designation for Honduras effective January 6, 2024, through July 5, 2025.[6]
- On June 21, 2023, DHS announced via FRN the rescission of the 2018 termination of the TPS designation for Nepal and the extension of the TPS designation for Nepal, effective December 25, 2023, through June 24, 2025.[7]
- On June 21, 2023, DHS announced via FRN the rescission of the 2017 termination of the TPS designation for Nicaragua and the extension of the TPS designation for Nicaragua effective January 6, 2024, through July 5, 2025.[8]
- On August 21, 2023, DHS announced via FRN the extension of the TPS designation for Sudan and the redesignation of Sudan for 18 months, effective October 20, 2023, through April 19, 2025.[9]
- On August 21, 2023, DHS announced via FRN the extension of the TPS designation for Ukraine and the redesignation of Ukraine for 18 months, effective October 20, 2023, through April 19, 2025.[10]
- On September 6, 2023, DHS announced via FRN the extension of the TPS designation for South Sudan and the redesignation of South Sudan, for 18 months, effective November 4, 2023, through May 3, 2025.[11]

[3] *See* 88 FR 5022 (January 26, 2023) (18-month extension of the TPS designation for Haiti and its redesignation through August 3, 2024).
[4] *See* 88 FR 15434 (March 13,2023) (18-month extension of the TPS designation for Somalia and its redesignation through September 17, 2024).
[5] *See* 88 FR 40282 (June 21, 2023) (rescission of termination and 18-month extension of the TPS designation for El Salvador through March 9, 2025).
[6] *See* 88 FR 40304 (June 21, 2023) (rescission of termination and 18-month extension of the TPS designation for Honduras through July 5, 2024).
[7] *See* 88 FR 40317 (June 21, 2023) (rescission of termination and 18-month extension of the TPS designation for Nepal through June 24, 2025).
[8] *See* 88 FR 40294 (June 21, 2023) (rescission of termination and 18-month extension of the TPS designation for Nicaragua through July 5, 2025).
[9] *See* 88 FR 56864 (August 21, 2023) (18-month extension of the TPS designation for Sudan and its redesignation through April 19, 2025).
[10] *See* 88 FR 56872 (August 21,2023) (18-month extension of the TPS designation for Ukraine and its redesignation through April 19, 2025).
[11] *See* 88 FR 60971 (September 6, 2023) (18-month extension of the TPS designation for South Sudan and its redesignation through May 3, 2025).

- On September 25, 2023, DHS announced via FRN the extension of the TPS designation for Afghanistan and the redesignation of Afghanistan for 18 months, effective November 21, 2023, through May 20, 2025.[12]
- On October 3, 2023, DHS announced via FRN the extension of the TPS designation for Venezuela for 18 months, effective March 11, 2024, through September 10, 2025, and separate redesignation of Venezuela for TPS for 18 months, effective October 3, 2023, through April 2, 2025.[13]
- On October 10, 2023, DHS announced via FRN the extension of the TPS designation for Cameroon and the redesignation of Cameroon for 18 months, effective December 8, 2023, through, June 7, 2025.[14]

In addition to the actions listed above, although the Secretary did not announce any new TPS actions regarding Burma (Myanmar), Ethiopia, and Syria in CY 2023, Burma (Myanmar), Ethiopia, and Syria's 18-month designations continued through the year. U.S. Citizenship and Immigration Services (USCIS) continued to process applications related to the TPS programs for these countries.

[12] *See* 88 FR 65728 (September 25, 2023) (18-month extension of the TPS designation for Afghanistan and its redesignation through May 20, 2025).
[13] *See* 88 FR 68130 (October 3, 2023) (18-month extension of the TPS designation for Venezuela through September 10, 2025, and its redesignation through April 2, 2025).
[14] *See* 88 FR 69945 (October 10, 2023) (18-month extension of the TPS designation for Cameroon and its redesignation through June 7, 2025).

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I. Legislative Requirement

Section 244(i) of the *Immigration and Nationality Act* (INA) (8 U.S.C. § 1254a(i) provides:

(i) Annual Report and Review. -

(1) Annual report. - Not later than March 1 of each year (beginning with 1992), the [Secretary of Homeland Security], after consultation with the appropriate agencies of the Government, shall submit a report to the Committees on the Judiciary of the House of Representatives and of the Senate on the operation of this section during the previous year. Each report shall include—

(A) a listing of the foreign states or parts thereof designated under this section,

(B) the number of nationals of each such state who have been granted temporary protected status under this section and their immigration status before being granted such status, and

(C) an explanation of the reasons why foreign states or parts thereof were designated under subsection (b)(1) and, with respect to foreign states or parts thereof previously designated, why the designation was terminated or extended under subsection (b)(3).

(2) Committee report. - No later than 180 days after the date of receipt of such a report, the Committee on the Judiciary of each House of Congress shall report to its respective House such oversight findings and legislation as it deems appropriate.

II. Background

Section 244(b)(1) of the INA provides the Secretary with the authority to designate a foreign state, or any part of such state, for TPS upon finding, among other things, that such state is experiencing ongoing armed conflict, an environmental disaster, or other extraordinary and temporary conditions. (*See* Executive Summary, fn. 1, for specific statutory requirements for each type of designation.) The Secretary may grant TPS to an eligible national of the designated foreign state (or to an eligible noncitizen having no nationality who last habitually resided in such state) who, as described in section 244(c)(1)(A) of the INA and implementing regulations in 8 C.F.R. § 244.2:

- Has been continuously physically present in the United States since the effective date of the most recent designation of the state as published in the FRN for the country designation;
- Has continuously resided in the United States since a date determined by the Secretary and published in the FRN;
- Is admissible as an immigrant except as otherwise provided under section 244(c)(2)(A) of the INA;
- Is not ineligible for TPS under section 244(c)(2)(B) of the INA; and
- Registers during an initial registration period of not less than 180 days, as announced in the FRN, or the applicant meets late initial registration criteria during any subsequent extension of TPS designation pursuant to 8 C.F.R. § 244.2(f)(2).

During the period for which the Secretary designated a foreign state for TPS, registered TPS beneficiaries are eligible to remain in the United States, cannot be removed, and are authorized to work, so long as their TPS was not withdrawn for individual ineligibility. They may also be granted authorization to travel abroad temporarily with prior consent of the Secretary. *See* INA §§ 244(a)(1), 244(a)(2), and 244(f)(3).

Granting TPS itself does not lead to lawful permanent resident status. When the Secretary terminates a foreign state's TPS designation, beneficiaries return to the same immigration status they possessed prior to gaining TPS (unless that status expired or was terminated) or continue to possess any other status they obtained while registered for TPS, if still valid. Beneficiaries who had no lawful status before obtaining TPS and who have not obtained any other lawful status after TPS return to unlawful status when the TPS designation ends.

III. Data Report

Section 3.1 Foreign States with TPS Actions in Calendar Year (CY) 2023

The following table (Table 1) reflects all foreign states for which a TPS action was taken in CY 2023. The table shows the most recent effective dates of each designation and/or extension or termination, and the expiration date for each foreign state's TPS designation as of December 31, 2023.

Table 1: CY 2023 TPS Designations by Country

Country	Last Action (as of 12/31/23)	Expiration (as of 12/31/23)	Federal Register Notice
Afghanistan	18-month extension and redesignation	May 20, 2025	88 FR 65728 (September 25, 2023)
Cameroon	18-month extension and redesignation	June 7, 2025	88 FR 69945 (October 10, 2023)
El Salvador	rescission of termination and 18-month extension	March 9, 2025	88 FR 40282 (June 21, 2023)
Haiti	18-month extension and redesignation	August 3, 2024	88 FR 5022 (January 26, 2023)
Honduras	rescission of termination and 18-month extension	July 5, 2025	88 FR 40304 (June 21, 2023)
Nepal	rescission of termination and 18-month extension	June 24, 2025	88 FR 40317 (June 21, 2023)
Nicaragua	rescission of termination and 18-month extension	July 5, 2025	88 FR 40294 (June 21, 2023)
Somalia	18-month extension and redesignation	September 17, 2024	88 FR 15434 (March 13, 2023)
South Sudan	18-month extension and redesignation	May 3, 2025	88 FR 60971 (September 06, 2023)
Sudan	18-month extension and redesignation	April 19, 2025	88 FR 56864 (August 21, 2023)
Ukraine	18-month extension and redesignation	April 19, 2025	88 FR 56872 (August 21, 2023)
Venezuela	18-month extension of the 2021 designation (Venezuela 2021) 18-month redesignation (Venezuela 2023)	September 10, 2025[15] April 2, 2025[16]	88 FR 68130 (October 3, 2023)

[15] Extension of Venezuela's 2021 TPS designation for existing beneficiaries of TPS and those who filed initial applications for TPS under Venezuela 2021 that were still pending. The extension of Venezuela's 2021 designation runs from March 11, 2024, to September 10, 2025.

[16] Separate redesignation of Venezuela for TPS for individuals who had not yet filed for TPS. The 2023 redesignation of Venezuela runs from October 3, 2023, through April 2, 2025.

Yemen	18-month extension and redesignation	September 3, 2024	88 FR 94 (January 3, 2023)

Data Source: USCIS website.

The following table (Table 2) reflects the estimated number of TPS beneficiaries under each designated foreign state at the close of the CY 2023. For comparison and trend analysis purposes, TPS beneficiary data at the close of each year from 2019–2022 are also listed.

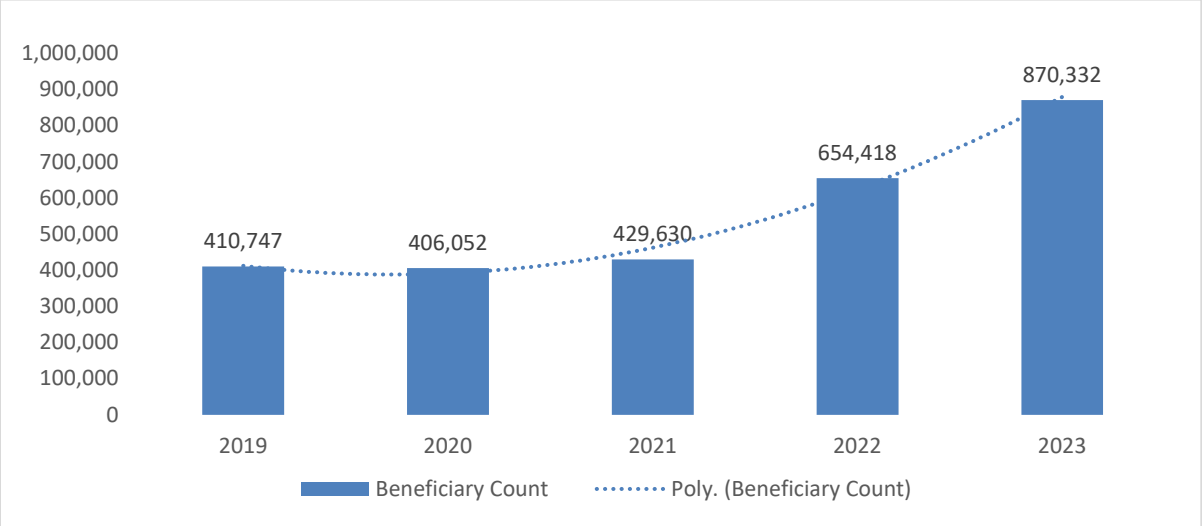
Table 2: TPS Beneficiaries by Year and Country, CY 2019–2023

	2023	2022	2021	2020	2019
Afghanistan	**5,762**	578	-	-	-
Burma	**2,224**	1,291	247	-	-
Cameroon	**2,399**	1,129	-	-	-
El Salvador	**236,270**	239,139	241,699	244,921	247,412
Ethiopia	**2,083**	-	-	-	-
Haiti	**204,759**	110,638	53,558	54,365	55,218
Honduras	**74,572**	75,803	76,737	78,149	79,290
Nepal	**13,896**	14,477	14,556	14,642	14,549
Nicaragua	**4,041**	4,163	4,250	4,344	4,409
Somalia	**562**	425	436	447	454
South Sudan	**146**	102	97	101	96
Sudan	**1,260**	1,082	706	738	771
Syria	**6,142**	6,424	6,455	6,682	6,901
Ukraine	**29,739**	14,647	-	-	-
Venezuela	**284,207**	182,579	29,193	-	-
Yemen	**2,270**	1,941	1,696	1,663	1,647
Total	**870,332**	654,418	429,630	406,052	410,747

Data Source: Computer Linked Application Information Management System (CLAIMS) and USCIS Electronic Immigration System (USCIS ELIS).
Note: The counts include TPS holders who have adjusted to lawful permanent resident (LPR) status.

The following figure (Figure 1) reflects the trends in total count of TPS beneficiaries at the close of the CY for each year from 2019–2023. Compared to CY 2019–2021, which had relatively stable TPS beneficiary population each year, the size of TPS population has increased over the past two years, culminating in CY 2023, which is more than double the number of individuals receiving TPS in 2021.

Figure 1: TPS Total Beneficiary Count by Year, CY 2019–2023



Data Source: Computer Linked Application Information Management System (CLAIMS) and USCIS Electronic Immigration System (USCIS ELIS).

Section 3.2 Number and Prior Immigration Status of TPS Beneficiaries in CY 2023

Table 3 and Appendix A[17] reflect the self-reported immigration status codes of noncitizens at their initial filing for TPS. Appendix B describes each immigration status code in the first column of the table. Under INA § 244(a)(5), a noncitizen may continue to maintain his or her prior immigration status while holding TPS, provided he or she maintains eligibility for the prior immigration status.

Overall TPS beneficiaries have a range of prior immigration statuses as Table 3 and Appendix A show. Across all TPS countries, a large portion of beneficiaries' prior immigration status were Unknown (497,514; 57.2 percent) and Other (82,973; 9.5 percent). Because this information is self-reported, the prior immigration status of those included in these general categories is uncertain, but they may include noncitizens who entered without inspection; who were stowaways; as well as others who had no immigration status, who had overstayed their visa, who could not recall their immigration status, and who had applications/petitions for status denied prior to obtaining TPS. Other top prior immigration statuses among TPS beneficiaries were asylum seekers (AS, AO, and 999 combined, 178,043; 20.5 percent) and parolees (PAR, OAR, and UHP combined, 27,786; 3.2 percent).[18] Some TPS beneficiaries also appear to have held a Temporary Visitors for Pleasure visa (26,118; 3.0 percent). Slightly more than 1 in 100 TPS

[17] For the purposes of Table 3, Appendices A and B, and the accompanying explanations, "immigration status" may refer to an individual's immigration *status* or *category* at initial filing, or to the *process step* they were undergoing at that time. The variation is due to the self-reported nature of the information.

[18] The two- or three-digit code is an immigration status code assigned to noncitizens. They are defined as: AS = Asylum Applicant with Work Authorization; AO = Asylum Applicant without Work Authorization; 999 = Alien Awaiting Decision of Asylum; PAR = Parolee; OAR = Operation Allied Refugee – Parole; UHP = Ukrainian Humanitarian Parole. For a complete immigration status code description, please see Appendix B.

beneficiaries held an academic student visa (F-1). A small proportion of TPS beneficiaries held a Temporary Worker in Specialty Occupations visa (1,428; 0.2 percent) or other employment-based visas.

Table 3: Top 25 Prior Immigration Statuses of TPS Beneficiaries at Initial Filing

No. by Frequency	Immigration Status at Filing	Frequency	Percent
1	UN (UNKNOWN OR NOT REPORTED)	497,514	57.2
2	AS (ASYLUM APPLICNT WITH WORK AUTHORIZATION)	137,822	15.8
3	OTHER (OTHER COA HOLDERS)	82,973	9.5
4	B2 (TEMPORARY VISITORS FOR PLEASURE)	26,118	3.0
5	AO (ASYLUM APPLICANT WITHOUT WORK AUTHORIZATION)	24,613	2.8
6	PAR (PAROLEE)	23,219	2.7
7	999 (ALIEN AWAITING DECISION OF ASYLUM)	15,608	1.8
8	EWI (ENTRY WITHOUT INSPECTION)	11,525	1.3
9	DT (PAROLEE DISTRICT/POE AUTHORIZED)	10,605	1.2
10	F1 (ACADEMIC STUDENTS)	9,113	1.1
11	OAR (OPERATION ALLIED REFUGE - PAROLE)	3,489	0.4
12	IJ (REFERRED TO IMMIGRATION JUDGE)	3,406	0.4
13	ABS (ABANDONMENT OF STATUS)	2,972	0.3
14	ASY (ASYLEE)	1,808	0.2
15	RE (REFUGEE)	1,688	0.2
16	PEN (PENDING LPR)	1,587	0.2
17	H1B (TEMPORARY WORKERS IN SPECIALTY OCCUPATIONS)	1,428	0.2
18	B1 (TEMPORARY VISITORS FOR BUSINESS)	1,267	0.2
19	F2 (SPOUSES AND CHILDREN OF F1)	1,227	0.1
20	UHP (UKRAINIAN HUMANITARIAN PAROLE)	1,078	0.1
21	E2 (TREATY INVESTORS AND THEIR SPOUSES AND CHILDREN)	1040	0.1
22	J1 (EXCHANGE VISITORS)	887	0.1
23	RE5 (HAITIAN WITH REFUGEE STATUS IN U.S.)	619	0.1
24	H4 (SPOUSES AND CHILDREN OF H1, H2, OR H3)	566	0.1
25	WT (VISA WAIVER PROGRAM – TEMPORARY VISITORS FOR PLEASURE)	552	0.1

Data Source: Computer Linked Application Information Management System (CLAIMS) and USCIS Electronic Immigration System (USCIS ELIS). Prior immigration status is self-reported by TPS beneficiaries on Form I-821, Application for Temporary Protected Status. Class of Admission Code is based upon self-reported information appeared on Form I-821. At the time of filing for TPS, many applicants report that they cannot recall their immigration status. Immigration status, or lack of status, does not impact eligibility for TPS. See INA § 244(a)(5). Percentages do not sum to 100 as only the top 25 classes are included.

A complete table of TPS beneficiaries' immigration status at initial filing by country is shown in Appendix A. Even though the prior immigration status reported by TPS beneficiaries spans a wide spectrum (more than 200 in terms of status code), it is worth noting that over 99 percent of all TPS beneficiaries held one of the top 25 immigration statuses at initial filing.

Section 3.3 Age, Gender, and State of Residence of TPS Beneficiaries in CY 2023

Tables 4 to 6 describe key demographics and state of residence of the TPS beneficiary population.[19] A typical TPS beneficiary is a 35-54 year old individual residing in one of four large states (Florida, Texas, California, and New York). The average age of all TPS beneficiaries in CY 2023 is 38.7 years, and the largest number of beneficiaries falls into the age group of 45 to 54 years (27.5 percent). Younger (under 24 years of age) and older beneficiaries (over 55 years of age) are relatively small in proportion, 14.2 percent and 22.1 percent, respectively. Slightly more than half of TPS beneficiaries (454,501; 52.2 percent) are male, while 413,689 (47.5 percent) are female. A small number of TPS beneficiaries (2,077; 0.002 percent) shows their gender identity as unknown/unreported. More than six in ten TPS beneficiaries (61.7 percent) live in these four states: Florida (287,895; 33.1 percent), Texas (95,483; 11.0 percent), California (83,513; 9.6 percent), and New York (70,193; 8.1 percent).

Table 4: TPS Beneficiaries by Age Group

Age Group	Frequency	Percent (%)
Under 18	77,766	8.9
18 to 24 years	46,222	5.3
25 to 34 years	123,990	14.2
35 to 44 years	191,290	22.0
45 to 54 years	239,065	27.5
55 to 64 years	125,064	14.4
65 and above	66,921	7.7
Unknown	14	0.0

Data Source: Computer Linked Application Information Management System (CLAIMS) and USCIS Electronic Immigration System (USCIS ELIS).

Table 5: TPS Beneficiaries by Gender

Gender	Frequency	Percent (%)
Male	454,501	52.2
Female	413,689	47.5
Unknown/Unreported	2,142	0.3

Data Source: Computer Linked Application Information Management System (CLAIMS) and USCIS Electronic Immigration System (USCIS ELIS).

[19] TPS beneficiaries' demographic information (age and gender) and state of residence are based on self-reported data on their most recently submitted from I-821, Application for Temporary Protected Status. As such, state of residence of any TPS beneficiary only reflects the time when the most recent Form I-821 was filed.

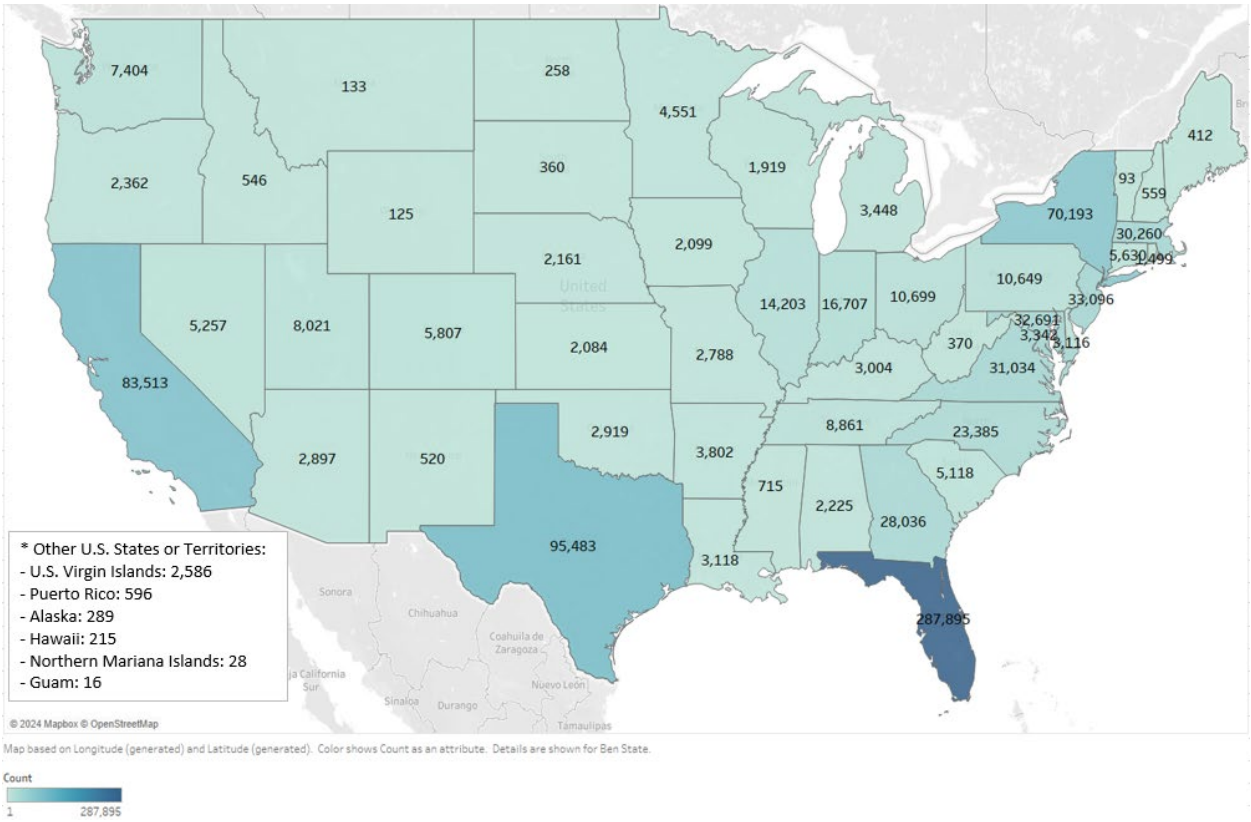
Table 6: TPS Beneficiaries by State of Residence at Filing

State/Territory	Beneficiary Count	Percent (%)
Florida	287,895	33.1
Texas	95,483	11.0
California	83,513	9.6
New York	70,193	8.1
New Jersey	33,096	3.8
Maryland	32,691	3.8
Virginia	31,034	3.6
Massachusetts	30,260	3.5
Georgia	28,036	3.2
North Carolina	23,385	2.7
Indiana	16,707	1.9
Illinois	14,203	1.6
Ohio	10,699	1.2
Pennsylvania	10,649	1.2
Tennessee	8,861	1.0
Utah	8,021	0.9
Washington	7,404	0.9
Colorado	5,808	0.7
Connecticut	5,630	0.7
Nevada	5,257	0.6
South Carolina	5,118	0.6
Minnesota	4,551	0.5
Arkansas	3,802	0.4
Michigan	3,448	0.4
District of Columbia	3,342	0.4
Louisiana	3,118	0.4
Delaware	3,116	0.4
Kentucky	3,004	0.4
Oklahoma	2,919	0.3
Arizona	2,897	0.3
Missouri	2,788	0.3
U.S. Virgin Islands	2,586	0.3
Oregon	2,362	0.3
Alabama	2,225	0.3
Nebraska	2,161	0.3
Iowa	2,099	0.2
Kansas	2,084	0.2
Wisconsin	1,919	0.2
Rhode Island	1,499	0.2
Unknown	1,172	0.1
Mississippi	715	0.1
Puerto Rico	596	0.1
New Hampshire	559	0.1
Idaho	546	0.1
New Mexico	520	0.1
Maine	412	0.1
West Virginia	370	0.0
South Dakota	360	0.0
Alaska	289	0.0

State/Territory	Beneficiary Count	Percent (%)
North Dakota	258	0.0
Hawaii	215	0.0
Montana	133	0.0
Wyoming	125	0.0
Vermont	93	0.0
Federated States of Micronesia	38	0.0
Northern Mariana Islands	28	0.0
Guam	16	0.0
Palau	7	0.0
Armed Forces the Americas	6	0.0
American Samoa	4	0.0
Marshall Islands	4	0.0
Armed Forces Europe	3	0.0
Total	870,332	100.0

Data Source: Computer Linked Application Information Management System (CLAIMS) and USCIS Electronic Immigration System (USCIS ELIS).

Figure 2: TPS Beneficiaries by State of Residence at Filing



Data Source: Computer Linked Application Information Management System (CLAIMS) and USCIS Electronic Immigration System (USCIS ELIS).

IV. Analysis/Discussion

Section 4.1 Legal Authority for the Secretary to Designate a Foreign State for TPS Under INA § 244(b)(1)

Under INA § 244(b)(1), the Secretary, after consultation with appropriate agencies of the U.S. Government, may designate a foreign state (or any part of such foreign state) if conditions in the foreign state meet one or more statutory bases for designation: ongoing armed conflict, environmental disaster, or extraordinary and temporary conditions.[20] An initial TPS designation is purely discretionary, and the Secretary can decline to make a designation even if he or she determines eligible conditions exist in a foreign state. The Secretary may designate the foreign state for a period of six, 12, or 18 months.[21] When the Secretary designates a foreign state for TPS, he or she establishes the dates from which a TPS applicant must have continuously resided in and been continuously physically present in the United States in order to be eligible for TPS under the particular designation.[22] By establishing these "continuous residence" and "continuous physical presence" dates in accordance with TPS statutes, the Secretary can afford temporary protection to the most appropriate group of noncitizens from the designated country.

Section 4.2 Legal Authority for the Secretary to Extend or Terminate TPS Designations of Foreign States Under INA § 244(b)(3)

As required by the INA, the Secretary conducts a periodic review of country conditions affecting each TPS-designated foreign state in consultation with appropriate agencies of the U.S. Government, to determine whether the conditions support extension or termination of the TPS designation, and whether a new designation may be warranted.[23] At least 60 days prior to the current expiration of a country's TPS designation, the Secretary must review the conditions in the designated foreign state and determine whether the conditions for such designation continue to be met. If the Secretary determines statutory conditions for designation are no longer met, the TPS statute requires that he or she terminate the designation. If the Secretary finds, however, that conditions for designation are met (or makes no determination at all), the statute requires the TPS designation be extended for a minimum of six months, or, at the Secretary's discretion, for 12 or 18 months. USCIS publishes a notice in the *Federal Register* that announces the Secretary's determination of whether to extend, extend and redesignate, or terminate a country's TPS designation. That notice includes an explanation of the reasons for the determination.

[20] *See supra* note 1 (providing text of INA § 244(b)(1)).
[21] *See* INA § 244(b)(2)(B).
[22] *See* INA § 244(c)(1)(A). The continuous residence date is such date as the Secretary may establish. *Id.* at §(244(c)(1)(A)(i). However, the continuous physical presence date is the effective date of the most recent designation, which itself is the FRN publication date of the designation or such later date as the Secretary may specify in the notice. *See Id.* at §244(b)(2)(A); §244(c)(1)(A)(ii).
[23] *See* INA § 244(b)(3)(A)-(C).

Section 4.3 Extensions of Designations Under INA § 244(b)(3)(C)

This section provides details about TPS actions announced by the Secretary in CY 2023 regarding foreign states for which the most recent action by the Secretary, as of December 31, 2023, was an extension of the state's existing TPS designation.

El Salvador

El Salvador was initially designated for TPS on the basis of environmental disaster following two separate massive earthquakes in 2001 that resulted in a substantial, temporary disruption of living conditions in the area affected. Designation was made at the request of the country's government, which was temporarily unable to handle adequately the return of its nationals.[24] After its initial designation, El Salvador's TPS designation was extended 11 consecutive times (for periods of 12 or 18 months at a time) under the same statutory basis of environmental disaster.

Subsequently, DHS announced the termination of TPS for El Salvador with an effective date of September 9, 2019.[25] The termination decision was the subject of litigation and a court order, and, as a result, the termination had not taken effect. On June 21, 2023, DHS published an FRN announcing the rescission of the 2017 termination of the TPS designation of El Salvador and simultaneously extended the TPS designation of El Salvador for 18 months from September 10, 2023, through March 9, 2025.[26]

After conducting an independent assessment of the country conditions in El Salvador as they existed in 2018 and in June 2023, the Secretary determined that El Salvador's 2001 TPS designation should not have been terminated. The conditions in El Salvador that gave rise to its TPS designation in 2001 persisted in 2018 and in June 2023. El Salvador suffered catastrophic damage due to the 2001 earthquakes. Together, the earthquakes killed over 1,150 people,[27] injured over 8,000, and affected more than 1.5 million people[28] (approximately 25 percent of the population[29]). The earthquakes damaged or destroyed over 300,000 homes and 2,647 public schools and demolished critical infrastructure throughout the country.[30] At the time of the determination to terminate the designation of TPS for El Salvador, although some social and economic progress had been made, frequent and significant environmental disasters occurred

[24] *Designation of El Salvador Under Temporary Protected Status Program,* 66 FR 14214 (Mar. 9, 2001).
[25] *Termination of the Designation of El Salvador for Temporary Protected Status*, 83 FR 2654 (Jan. 18, 2018).
[26] *Reconsideration and Rescission of Termination of the Designation of El Salvador for Temporary Protected Status; Extension of the Temporary Protected Status Designation for El Salvador*, 88 FR 40282 (June 21, 2023).
[27] *Earthquakes Fast Facts*, CNN Editorial Research, June 22, 2022, available at https://www.cnn.com/2013/07/05/world/earthquakes-fast-facts/index.html (last visited Mar. 6, 2023).
[28] *El Salvador—Earthquakes Final Fact Sheet, Fiscal Year (FY) 2001*, US Agency for International Development Situation Report, Sept. 7, 2001, available at https://reliefweb.int/report/el-salvador/el-salvador-earthquakes-final-fact-sheet-fiscal-year-fy-2001 (last visited Mar. 6, 2023).
[29] *El Salvador Earthquakes: Final Fact Sheet (FY 2001)*; *AFSC El Salvador earthquake response: Two years later – An assessment and report*, American Friends Service Committee, May 15, 2003, available at https://reliefweb.int/report/el-salvador/afsc-el-salvador-earthquake-response-two-years-later-assessment-and-report (last visited Mar. 6, 2023).
[30] *Id.*

after the 2001 earthquakes, causing additional challenges.[31] Recovery from the earthquakes continued to be slow and encumbered by hurricanes and tropical storms, heavy rains and flooding, volcanic and seismic activity, a coffee rust epidemic, a prolonged and severe drought, and an increase in various mosquito-borne diseases, among other things.

The Secretary extended the TPS designation of El Salvador because the conditions supporting El Salvador's 2001 designation for TPS on the basis of environmental disaster remain. Since the disastrous earthquakes in 2001, El Salvador has been encumbered by several significant natural disasters and environmental challenges. El Salvador continues to suffer from the residual effects of the earthquakes, and recovery from these earthquakes has been impeded by El Salvador's ongoing environmental challenges, including its high vulnerability to "more frequent occurrences of floods, droughts, and tropical storms, all of which disproportionally affect poor and vulnerable populations."[32] During the rainy season, which generally runs from June to November, El Salvador is impacted by extreme weather, which damages roads, property, and infrastructure; disrupts supplies, services, and utilities; and even causes loss of life.[33] Through the present, El Salvador continues to experience compounding environmental disasters, hindering recovery and rendering it unable to handle adequately the return of its nationals. El Salvador also continues to experience a frail macroeconomic environment, a high rate of unemployment, violence, and a poor security situation that continues to render the country temporarily unable to adequately handle the return of its nationals. El Salvador is plagued by intense violence involving criminal groups and gang warfare, as well as a deteriorating political crisis, due to the government's aggressive security strategies to combat gang violence.

Honduras

Honduras was initially designated for TPS based on an environmental disaster (Hurricane Mitch) that resulted in a substantial, temporary disruption of living conditions in the area affected. It was designated in response to a request by the country's government, which was temporarily unable to handle adequately the return of its nationals.[34] Since its initial designation in 1999, TPS for Honduras was extended thirteen consecutive times under the same statutory basis of environmental disaster until 2017.[35] That year, former Acting Secretary Elaine Duke did not

[31] *Report: Extending Temporary Protected Status for El Salvador: Country Conditions and U.S. Legal Requirements*, American University, Dec. 2017, available at: https://www.american.edu/centers/latin-american-latino-studies/extending-tps-for-el-salvador.cfm (last visited Mar. 6, 2023); Resolving Land Ownership Issues for a Community Water Project: A Post-Earthquake Development Dispute in Rural El Salvador, April 07, 2010, https://www.tandfonline.com/doi/pdf/10.1080/14649350903538046 (last visited: March 6, 2023).
[32] The World Bank in El Salvador, Overview, The World Bank, Apr. 22, 2022, available at https://www.worldbank.org/en/country/elsalvador/overview (last visited Mar. 6, 2023).
[33] Foreign Travel Advice El Salvador, Gov.UK, Oct. 20, 2022, available at https://www.gov.uk/foreign-travel-advice/el-salvador/print (last visited Mar. 6, 2023).
[34] Designation of Honduras Under Temporary Protected Status, 64 FR 524 (Jan. 5, 1999).
[35] Extension of Designation of Honduras Under Temporary Protected Status Program, 65 FR 30438 (May 11, 2000); Extension of the Designation of Honduras Under the Temporary Protected Status Program, 66 FR 23269 (May 8, 2001); Extension of the Designation of Honduras Under the Temporary Protected Status Program, 67 FR 22451 (May 3, 2002); Extension of the Designation of Honduras Under Temporary Protected Status Program; Automatic Extension of Employment Authorization Documentation for Hondurans, 68 FR 23744 (May 5, 2003); Extension of the Designation of Temporary Protected Status for Honduras; Automatic Extension of Employment Authorization

make a decision on extending or terminating Honduras's TPS designation by the statutory deadline, resulting in an automatic six-month extension of the designation, through July 5, 2018.[36]

Subsequently, DHS announced the termination of TPS for Honduras, with an effective date of January 5, 2020.[37] The termination decision was the subject of litigation and a court order, and as a result, the termination had not taken effect. On June 21, 2023, DHS published an FRN announcing the rescission of the 2018 termination of the TPS designation of Honduras and simultaneously extended the TPS designation of Honduras for 18 months from January 6, 2024, through July 5, 2025.

After conducting an independent assessment of the country conditions in Honduras as they existed in 2018 and in June 2023, Secretary Mayorkas determined that Honduras' 1999 designation should not have been terminated. The conditions in Honduras that gave rise to its TPS designation in 1999 persisted in 2018 and in June 2023. Numerous environmental, political, and social crises since Hurricane Mitch have prevented the country from recovering from the hurricane and continue to impair Honduras from ensuring the safe return of its nationals.

Although recovery efforts were implemented in the years after Hurricane Mitch, the effects of Hurricane Mitch set back Honduras economically and socially by as much as 20 years.[38] Since Honduras was designated for TPS in January 1999, various natural disasters and related environmental concerns—including hurricanes, tropical storms, flooding and heavy rain, severe drought, and mosquito-borne illnesses—have contributed to loss of life and damage to property and infrastructure in Honduras and prevented the country from fully recovering from Hurricane Mitch. Since Hurricane Mitch, Honduras has been impacted by a "repetitive cycle" of storm-related damage to infrastructure and 16 of the 18 departments in the country recently reported

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Documentation for Honduras TPS Beneficiaries, 69 FR 64084 (November 3, 2004); Extension of the Designation of Temporary Protected Status for Honduras; Automatic Extension of Employment Authorization Documentation for Honduras TPS Beneficiaries, 71 FR 16328 (March 31, 2006); Extension of the Designation of Honduras for Temporary Protected Status; Automatic Extension of Employment Authorization Documentation for Honduran TPS Beneficiaries, 72 FR 29529 (May 29, 2007); Extension of the Designation of Honduras for Temporary Protected Status, 73 FR 57133 (Oct. 1, 2008); Extension of the Designation of Honduras for Temporary Protected Status and Automatic Extension of Employment Authorization Documentation for Honduran TPS Beneficiaries, 75 FR 24734 (May 5, 2010); Extension of the Designation of Honduras for Temporary Protected Status and Automatic Extension of Employment Authorization Documentation for Honduran TPS Beneficiaries, 76 FR 68488 (Nov. 4, 2011); Extension of the Designation of Honduras for Temporary Protected Status, 78 FR 20123 (Apr. 3, 2013); Extension of the Designation of Honduras for Temporary Protected Status, 79 FR 62170 (Oct. 16, 2014); Extension of the Designation of Honduras for Temporary Protected Status, 81 FR 30331 (May 16, 2016).

[36] *See* 82 FR 59630 (Dec. 15, 2017). If the Secretary makes no decision on extension or termination of a country's TPS designation by at least 60 days before the expiration of the existing TPS designation, then INA section 244(b)(3)(C) requires that the designation be extended an additional six months (or 12 or 18 months in the Secretary's discretion).

[37] *Termination of the Designation of Honduras for Temporary Protected Status,* 83 FR 26074 (June 5, 2018).

[38] Suárez, Ginés, & Sánchez, Walter J., *Desastres, Riesgo y Desarrollo en Honduras: Delineando los vínculos entre el desarrollo humano y la construcción de riesgo en Honduras*, Programa de las Naciones Unidas para el Desarrollo (PNUD), p.22, Jan. 2012, available at https://criterio.hn/wp-content/uploads/2020/11/INFORME-PNUD-desastres-ambientales-honduras.pdf

damaged roads, collapsed bridges, devastated crops, flooded houses, and landslides.[39] Additionally, since the extension of TPS for Honduras in 2018,[40] violence and social and political concerns have adversely impacted living conditions and hindered recovery from environmental disasters in Honduras.[41] These subsequent natural disasters, violence, and social and political concerns continue to inflict damage on a population that has not fully recovered from Hurricane Mitch and impact Honduras's ability to adequately handle the return of its nationals.

Nicaragua

Nicaragua was initially designated for TPS on the basis of environmental disaster following Hurricane Mitch that resulted in a substantial, temporary disruption of living conditions in the area affected. It was designated at the request of the country's government, which was temporarily unable to handle adequately the return of its nationals.[42] Since its initial designation in 1999, TPS for Nicaragua was extended 13 consecutive times (for periods of 12 or 18 months at a time) under the same statutory basis of environmental disaster.

Subsequently, DHS announced the termination of TPS for Nicaragua, with an effective date of January 5, 2019.[43] The termination decision was the subject of litigation and a court order, and as a result, the termination had not taken effect. On June 21, 2023, DHS published an FRN announcing the rescission of the 2017 termination of the TPS designation of Nicaragua and simultaneously extended the TPS designation of Nicaragua for 18 months from January 6, 2024, through July 5, 2025.[44]

After conducting an independent assessment of the country conditions in Nicaragua as they existed in 2017 and in June 2023, Secretary Mayorkas determined that Nicaragua's 1999 TPS designation should not have been terminated. The conditions in Nicaragua that gave rise to its TPS designation in 1999 persisted in 2017 and in June 2023. Hurricane Mitch, which struck in 1998, killed approximately 2,500 people and 885 were reported missing.[45] The devastation of

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[39] *Starting from Scratch Over and Over Again: Heavy Rains and Floods Displace Thousands of Hondurans, International Organization for Migration (IOM)*, Oct. 28, 2022, available at: https://reliefweb.int/report/honduras/starting-scratch-over-and-over-again-heavy-rains-and-floods-displace-thousands-hondurans (last visited Apr. 6, 2023).

[40] The TPS designation of Honduras was statutorily automatically extended for 6 months (from January 6, 2018, through July 5, 2018) after the Secretary of Homeland Security did not make a determination on Honduras's designation 60 days prior to the previous expiration (January 5, 2018). Subsequently, on June 5, 2018, the Secretary published a determination to terminate TPS for Honduras, effective January 5, 2020.

[41] United Nations Office for the Coordination of Humanitarian Affairs, Honduras Humanitarian Needs Overview 2023 (September 2022) (Feb. 8, 2023), https://reliefweb.int/report/honduras/honduras-humanitarian-needs-overview-2023-september-2022 (last visited Mar. 13, 2023).

[42] *Designation of Nicaragua Under Temporary Protected Status*, 64 FR 526 (Jan. 5, 1999).

[43] *Termination of the Designation of Nicaragua for Temporary Protected Status*, 82 FR 59636 (Dec. 15, 2017).

[44] *Reconsideration and Rescission of Termination of the Designation of Nicaragua for Temporary Protected Status; Extension of the Temporary Protected Status Designation for Nicaragua*, 88 FR 40294 (June 21, 2023).

[45] OCHA, Central America – Hurricane Tropical Storm Mitch OCHA Situation Report No. 14, Nov. 16, 1998, available at https://reliefweb.int/report/belize/central-america-hurricanetropical-storm-mitch-ocha-situation-report-no-14 (last visited Nov. 7, 2022).

the hurricane affected nearly 868,000 people.[46] Landslides and floods destroyed entire villages and caused extensive damages to the transportation network, housing, medical and educational facilities, water supply and sanitation facilities, and the agricultural sector.[47] Overall damage estimates ranged from $1.3 to 1.5 billion.[48] At the time of the decision to terminate the designation of TPS, Nicaragua continued to experience significant challenges due to the destruction of the hurricane. While the international community and the Government of Nicaragua helped to repair the damage and destruction left behind by Hurricane Mitch and there were notable improvements in some sectors, several sectors including housing and infrastructure remained severely impacted.

The Secretary extended the TPS designation of Nicaragua because the conditions supporting Nicaragua's 1999 designation for TPS on the basis of environmental disaster remain. Since the disastrous hurricane in 1998, Nicaragua has been encumbered by several significant natural disasters and environmental challenges.

Nicaragua continues to suffer from the residual effects of Hurricane Mitch, and subsequent disasters have caused additional damage and added to the country's fragility. "In the last 20 years, Nicaragua has been hit by major, extreme weather events such as Hurricanes Mitch in 1998, Beta in 2005, Felix in 2007, and most recently by hurricanes Eta and Iota in November 2020…The economic, social, housing, and infrastructure losses have been devastating for the region[.]"[49] Nicaragua has also been impacted by other hydrometeorological events[50] and is also one of the countries in the Dry Corridor of Central America.[51] These environmental shocks have affected conditions throughout Nicaragua, resulting in deaths, damage to homes and infrastructure, and loss of crops throughout the years.[52] In addition to the numerous

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[46] OCHA, Central America – Hurricane Tropical Storm Mitch OCHA Situation Report No. 14, Nov. 16, 1998, available at https://reliefweb.int/report/belize/central-america-hurricanetropical-storm-mitch-ocha-situation-report-no-14 (last visited Nov. 7, 2022).

[47] Nicaragua: Huracán Mitch Daños, Costos, Acciones de Rehabilitación del Gobierno y la Cooperación Internacional, Government of Nicaragua, May 28, 1999, available at https://reliefweb.int/report/nicaragua/nicaragua-hurac%C3%A1n-mitch-da%C3%B1os-costos-acciones-de-rehabilitaci%C3%B3n-del-gobierno-y-la (last visited Nov. 18, 2022).

[48] *Nicaragua Overview*, U.S. Agency for International Development (USAID), http://web.archive.org/web/20110606154439/http://www.usaid.gov/pubs/bj2001/lac/ni/ (last visited Nov. 16, 2022). According to a USAID source, overall damages were US$1.5 billion. The Government of Nicaragua assessed damages at US$1.3 billion. *See* Nicaragua: Huracán Mitch Daños, Costos, Acciones de Rehabilitación del Gobierno y la Cooperación Internacional.

[49] Nicaragua: Preparatory Action for Disaster/Crisis - DREF Plan of Action, Operation N° MDRNI011, International Federation of Red Cross and Red Crescent Societies (IFRC), p.2, Sept. 3, 2021, available at https://reliefweb.int/report/nicaragua/nicaragua-preparatory-action-disastercrisis-dref-plan-action-operation-ndeg-mdrni011 (last visited Feb. 7, 2023).

[50] OCHA, Hydrometeorological and Climate Services Modernisation Plan For Nicaragua—January 2019, World Bank Group, p.2, Jan. 31, 2019, available at https://reliefweb.int/report/nicaragua/hydrometeorological-and-climate-services-modernisation-plan-nicaragua-january-2019 (last visited Feb. 7, 2023).

[51] OCHA, Central America's Dry Corridor: Turning emergency into opportunities, Oct. 19, 2022, available at https://reliefweb.int/report/honduras/central-americas-dry-corridor-turning-emergency-opportunities (last visited Feb. 7, 2023).

[52] Velásquez, Uriel, *Lluvias dejan 14 muertos en Nicaragua [Rains leave 14 dead in Nicaragua]*, El Nuevo Diario (Ni.), Oct. 19, 2018, available at https://web.archive.org/web/20181019114015/https://www.elnuevodiario.com.ni/nacionales/477437-lluvias-dejan-

environmental disasters following the 1998 hurricane, Nicaragua is experiencing political instability and a humanitarian crisis that continue to render the country temporarily unable to adequately handle the return of its nationals. Nicaragua is encumbered by the effects of several significant natural disasters, environmental challenges, political instability, and a resulting humanitarian crisis that adversely impact the country's ability to fully recover and continue to render the country temporarily unable to adequately handle the return of its nationals.

Nepal

Nepal was initially designated for TPS on June 24, 2015, on the basis of environmental disaster that resulted in a substantial, temporary disruption of living conditions in the area affected. It was designated at the request of the country's government, which was temporarily unable to handle adequately the return of its nationals.[53] TPS for Nepal was extended on October 26, 2016, under the same statutory basis of environmental disaster.[54]

Subsequently, DHS announced the termination of TPS for Nepal, with an effective date of June 24, 2019.[55] The termination decision was the subject of litigation and a court order, and as a result, the termination had not taken effect. On June 21, 2023, DHS published an FRN announcing the rescission of the 2018 termination of the TPS designation of Nepal and simultaneously extended the TPS designation of Nepal for 18 months from December 25, 2023, and ending on June 24, 2025.[56]

After conducting an independent assessment of the country conditions in Nepal as they existed in 2018 and in June 2023, the Secretary determined that Nepal's 2015 TPS designation should not have been terminated. The conditions in Nepal that gave rise to its TPS designation in 2015 persisted in 2018 and in June 2023. Nepal was initially designated for TPS in 2015 on environmental disaster grounds following a magnitude 7.8 earthquake, at the request of the country's government, and because Nepal was unable, temporarily, to handle adequately the

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14-muertos-nicaragua/; Nicaragua floods: DREF final report (8 July 2018), International Federation of Red Cross and Red Crescent Societies (IFRC), p.1, July 8, 2018, available at https://reliefweb.int/report/nicaragua/nicaragua-floods-dref-final-report-8-july-2018; A comprehensive action plan for the Dry Corridor in Nicaragua, Food and Agriculture Organization of the United Nations (FAO), Nov. 27, 2017, available at https://web.archive.org/web/20200731011949/https://www.fao.org/in-action/agronoticias/detail/en/c/1062713/; Moloney, Anastasia, In Honduras, years of drought pressure farmers to leave land, Reuters, Sept. 27, 2019, available at https://news.trust.org/item/20190927063451-szxlj/; Tórrez García, Cinthya, Trescientos mil nicaragüenses viven en riesgo ante sequía [Three hundred thousand Nicaraguans live at risk of drought], La Prensa (Ni.), Feb. 27, 2018, available at https://web.archive.org/web/20220613192407/https:/www.laprensani.com/2018/02/27/nacionales/2383214-trescientos-mil-nicaraguenses-viven-en-riesgo-ante-sequia; Josefsen Hermann, Lise, Caught between floods and drought: Farmers in Nicaragua living in uncertainty, DW, June 12, 2019, available at https://www.dw.com/en/caught-between-floods-and-drought-farmers-in-nicaragua-living-in-uncertainty/a-49021423; NICARAGUA: Dry spell in northern Nicaragua, ACAPS, p.1, July 24, 2019, available at https://www.acaps.org/sites/acaps/files/products/files/20190724_acaps_start_briefing_note_nicaragua_drought.pdf. (All sources listed in this footnote last visited Feb. 7, 2023).

[53] *Designation of Nepal Under Temporary Protected Status*, 80 FR 36346 (June 24, 2015).

[54] *Extension of the Designation of Nepal for Temporary Protected Status,* 81 FR 74470 (Oct. 26, 2016).

[55] *Termination of the Designation of Nepal for Temporary Protected Status*, 83 FR 23705 (May 22, 2018).

[56] *Reconsideration and Rescission of Termination of the Designation of Nicaragua for Temporary Protected Status; Extension of the Temporary Protected Status Designation for Nicaragua*, 88 FR 40317 (June 21, 2023).

return of its nationals.[57] Approximately 25 to 33 percent of Nepal's population (over 8 million people) in 39 of Nepal's 75 districts was affected by the earthquake. There were numerous aftershocks since the April 25, 2015, earthquake, with the strongest striking on May 12 and measuring magnitude 7.3. The May 12 aftershock contributed to additional casualties and resulted in the collapse of some buildings that had suffered damage in the April 25 earthquake. The earthquake and its aftershocks caused over 8,700 fatalities and more than 20,000 injuries, displaced millions of people, and resulted in destruction or significant damage to over 750,000 homes. The UN estimated that 2.8 million people were in need of humanitarian assistance after the earthquake. At the time of the decision to terminate the designation of TPS, Nepal continued to experience significant challenges due to the destruction.

The Secretary extended the TPS designation of Nepal because the conditions supporting Nepal's 2015 designation for TPS on the basis of environmental disaster remain. Since the disastrous earthquake in 2015, Nepal has been encumbered by several significant natural disasters and environmental challenges.

These more recent environmental disasters, including devastating floods, further earthquakes, and landslides, continue to disrupt living conditions and have added to the country's instability. Recent earthquakes have caused considerable damage throughout Nepal and impeded or reversed the progress the country had made since the 2015 earthquake. As recently as January 24, 2023, another 5.9 magnitude earthquake struck the Bajura district in the Sudurpaschim province.[58] Reports indicate that this earthquake resulted in damage to approximately 400 houses and the displacement of over 40 families.[59] Further, mapping showed that the landslide hazard in the fourteen worst-affected districts remained significantly higher than on the day of the earthquake in 2015.[60] While some areas experienced a degree of stabilization, new areas experienced landslides and others continued to develop risk of landslides.[61] The levels of landslide risk in these areas are expected to remain elevated for at least "several more years."[62] In October 2022, Nepal experienced widespread damage in many regions as a result of flooding and landslides that occurred after heavy rainfall.[63] The flooding and numerous landslides resulting from the storm destroyed critical infrastructure, including sections of major highways and market access roads.[64]

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[57] *Designation of Nepal Under Temporary Protected Status,* 80 FR 36346 (June 24, 2015).
[58] 5.9 M earthquake with epicentre in Bajura recorded, Kathmandu Post, Jan. 24, 2023, available at https://kathmandupost.com/national/2023/01/24/5-9-m-earthquake-with-epicentre-in-bajura-recorded (last visited Oct. 27, 2023).
[59] *Id.*
[60] Nick Rosser, et al., Changing significance of landslide hazard and risk after the 2015 Mw 7.8 Gorkha, Nepal Earthquake, Progress in Disaster Science, April 2021, available at https://www.sciencedirect.com/science/article/pii/S2590061721000193 (last visited Oct. 27, 2023).
[61] *Id.*
[62] *Id.*
[63] Nepal: Disruptions due to flooding and landslides ongoing in multiple regions as of Oct. 11, Crisis24, Oct. 11, 2022, available at https://crisis24.garda.com/alerts/2022/10/nepal-disruptions-due-to-flooding-and-landslides-ongoing-in-multiple-regions-as-of-oct-11 (last visited Oct. 27, 2023).
[64] Sunir Pandey, Flooding affects millions in Bangladesh, India and Nepal, UNICEF, Aug. 21, 2017, available at https://www.unicef.org/stories/flooding-affects-millions-bangladesh-india-and-nepal (last visited Oct. 27, 2023).

These environmental disasters further affect food security, impede post-earthquake recovery in these especially vulnerable areas, and debilitate Nepal's reconstruction efforts.[65] While food security conditions in Nepal have improved in recent years, "nearly 3.9 million people – approximately 13 percent of the country's population – were experiencing food insecurity as of June 2022."[66] Nepal has also been severely economically and agriculturally impacted by Russia's war on Ukraine, which has resulted in global food, fuel, and fertilizer shortages. The war has posed new threats to Nepal's food security and economy, both of which have struggled to stabilize under the impacts of the COVID-19 pandemic, environmental shocks, and above-average global food prices.[67] The global fertilizer shortage resulting from the Ukraine conflict left Nepal, a country heavily reliant on imports, unable to supply the necessary fertilizers for its farmers.[68] High inflation rates and recent interest rate hikes by Nepal's central bank compound the effects of an ongoing liquidity crunch, constraining access to finance and hampering economic growth and completion of water projects that would address Nepal's environmental vulnerabilities.[69]

Section 4.4 Extensions of Designations Under INA § 244(b)(3)(C) and Redesignation Under INA § 244(b)(1) and (c)(I)(A)(i)

This section provides details about TPS actions announced by the Secretary in CY 2023 regarding foreign states for which the most recent action by the Secretary, as of December 31, 2023, was an extension of the state's existing TPS designation and redesignation of the state.

Afghanistan

Afghanistan was initially designated for TPS on May 20, 2022, based on ongoing armed conflict and extraordinary and temporary conditions that prevented nationals of Afghanistan from

[65] Sangam Prasain and Mohan Budhaair, Fertiliser shortage, drought, heat wave threaten Nepal's farming future, Asia News Network, Aug. 31, 2022, available at https://asianews.network/fertiliser-shortage-drought-heat-wave-threaten-nepals-farming-future/ (last visited Oct. 27, 2023); Nepal Development Update, World Bank Group, Oct. 6, 2022, available at https://thedocs.worldbank.org/en/doc/a27ca3a08e77befb785fc6742708a56c-0310012022/original/Nepal-Development-Update-October-2022.pdf (last visited Oct. 27, 2023).

[66] Nepal Assistance Overview, USAID Bureau for Humanitarian Assistance, November 2022, available at https://www.usaid.gov/humanitarian-assistance/nepal (last visited Mar. 17, 2023).

[67] See e.g., Lekhanath Pandey Kathmandu, Ukraine conflict intensifies Nepal's economic woes, DW, April 15, 2022, available at https://www.dw.com/en/ukraine-conflict-intensifies-nepals-economic-woes/a-61488700 (last visited Oct. 27, 2023); Kristine Eck, Nepal in 2021: From Bad to Worse, University of California Press, Feb. 09, 2022, available at https://doi.org/10.1525/as.2022.62.1.19 (last visited Oct. 27, 2023).

[68] Sangam Prasain, et al., Farmers reduce acreage for lack of adequate fertilizer, The Kathmandu Post, July 29, 2022, available at https://kathmandupost.com/money/2022/07/29/farmers-reduce-acreage-for-lack-of-adequate-fertiliser (last visited Oct. 27, 2023); Sangam Prasain, Crippling fertiliser shortage clouds Paddy Day celebrations for thousands of farmers, The Kathmandu Post, June 29, 2022, available at https://kathmandupost.com/money/2022/06/29/crippling-fertiliser-shortage-clouds-paddy-day-celebrations-for-thousands-of-farmers (last visited Oct. 27, 2023); Sangam Prasain and Mohan Budhaair, Fertiliser shortage, drought, heat wave threaten Nepal's farming future, The Kathmandu Post, Aug. 31, 2022, available at https://asianews.network/fertiliser-shortage-drought-heat-wave-threaten-nepals-farming-future/ (last visited Oct. 27, 2023).

[69] Nepal Multidimensional Poverty Index 2021: Report, UNICEF, Sept. 2021, available at https://www.unicef.org/nepal/reports/nepal-multidimensional-poverty-index-2021-report (last visited Oct. 27, 2023).

returning in safety.[70] On September 25, 2023, DHS extended and redesignated Afghanistan for TPS for 18 months from November 21, 2023, through May 20, 2025, based on ongoing armed conflict and extraordinary and temporary conditions.[71]

As was noted in the last FRN, since the 2021 Taliban takeover, Afghanistan continues to experience serious insecurity and widespread harm due to armed conflict and insurgent actions. Violent armed conflict continues to occur between the Taliban and the Islamic State in Khorasan Province (ISIS-K) and by both groups against the civilian population.[72] The ongoing security crisis is compounded by a worsening human rights crisis, as Taliban resistance has led to summary killings, disappearances, and repression based on gender, religion, and ethnicity.[73] Women's and girls' rights, including many forms of participation in public and private life, have been severely curtailed, and gender-based violence has increased.[74]

Afghanistan is also facing a dire humanitarian crisis, with 15 million people facing acute food insecurity, as well as limited access to clean water and healthcare, destruction of infrastructure, and economic instability.[75] The United Nations World Food Programme found that Afghanistan is at "the highest risk of famine in a quarter of a century, with half of all families living in crisis-coping mode" and since August 2022, "nine out of 10 Afghan families cannot afford enough food – the highest in the world."[76] Additionally, Afghanistan faces a struggling health care system, massive internal displacement, and high rates of inflation, much of which is related to the Taliban takeover.

Cameroon

Cameroon was initially designated for TPS on June 7, 2022, based on ongoing armed conflict and extraordinary and temporary conditions that prevented nationals of Cameroon from returning

[70] *Designation of Afghanistan for Temporary Protected Status*, 87 FR 30976 (May 20, 2022).
[71] *Extension and Redesignation of Afghanistan for Temporary Protected Status*, 88 FR 65728 (Sept. 25, 2023).
[72] International Crisis Group, Afghanistan's Security Challenges under the Taliban, Aug. 12, 2022, available at https://www.crisisgroup.org/asia/south-asia/afghanistan/afghanistans-security-challenges-under-taliban (last visited Oct. 27, 2023); Human Rights Watch, World Report 2023—Afghanistan, Jan. 12, 2023, available at https://www.ecoi.net/en/document/2085369.html (last visited Oct. 27, 2023).
[73] Austrian Centre for Country of Origin and Asylum Research and Documentation, Ecoi.net Featured Topic on Afghanistan: Overview of recent developments and key players in Afghanistan, May 17, 2023, available at https://www.ecoi.net/en/document/2092065.html (last visited Oct. 27, 2023).
[74] UNHCR, A/HRC/52/84: Situation of human rights in Afghanistan—Report of the Special Rapporteur on the situation of human rights in Afghanistan, Richard Bennett, Feb. 09, 2023, available at https://www.ohchr.org/en/documents/country-reports/ahrc5284-situation-human-rights-afghanistan-report-special-rapporteur (last visited Oct. 27, 2023).
[75] Human Rights Watch, Afghanistan: Economic Roots of the Humanitarian Crisis, Mar. 1, 2022, available at https://www.hrw.org/news/2022/03/01/afghanistan-economic-roots-humanitarian-crisis (last visited Oct. 27, 2023); World Food Programme, WFP Afghanistan; Situation Report; 31 July, 2023, July 31, 2023, available at https://reliefweb.int/attachments/bb0a5390-5198-4194-b87d-c8a78cd42e22/20230524%20AFG%20External20Sitrep.pdf% (last visited Oct. 27, 2023).
[76] ReliefWeb, Funding drought forces UN food agency to cut rations in Afghanistan, Mar. 17, 2023, available at https://reliefweb.int/report/afghanistan/funding-drought-forces-un-food-agency-cut-rations-afghanistan (last visited Oct. 27, 2023).

in safety.[77] On October 10, 2023, DHS extended and redesignated Cameroon for TPS for 18 months from December 8, 2023, through June 7, 2025.[78]

As was noted in the last FRN, Cameroon continues to struggle with ongoing armed conflict between the Government of Cameroon and nonstate armed groups, specifically Boko Haram and the Islamic State West Africa Province (ISWAP).[79] This has resulted in killings, kidnappings, internal displacement, and destruction of civilian infrastructure. Large-scale attacks by Boko Haram have resulted in civilian and soldier deaths and the destruction of hundreds of homes while ISWAP attacks have led to reported abductions and theft of military equipment.[80] In addition to the ongoing armed conflict, Cameroon continues to face a secessionist insurgency in the northwest and southwest Anglophone regions. There, separatists continue to engage in human rights abuses against both government forces and civilians, including killings, kidnappings, and destruction of civilian infrastructure.[81] Reports indicate that Cameroonian government security forces have committed human rights violations in areas where they are engaged in separatist clashes. These reported violations include extrajudicial killings, torture, and sexual and gender-based violence.[82]

The humanitarian crisis in Cameroon is serious, with one out of every six people in Cameroon needing humanitarian assistance and protection, amounting to 4.7 million people.[83] An estimated three million people in Cameroon are expected to face acute food insecurity in 2023.[84] Disease is another contributing factor in the humanitarian crisis, with Cameroon recently experiencing an outbreak of cholera and a global cholera vaccine shortage complicating prevention efforts.[85] The violence, both as a result of the ongoing armed conflict and the

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[77] *Designation of Cameroon for Temporary Protected Status*, 87 FR 34706 (June 7, 2022).
[78] *Extension and Redesignation of Cameroon for Temporary Protected Status*, 88 FR 69945 (Oct. 10, 2023).
[79] Cameroon says military deployed after new militant attack kills at least a dozen, VOA, Aug. 3, 2023, available at https://www.voanews.com/a/cameroon-says-military-deployed-after-boko-haram-attack/7210055.html (last visited Oct. 27, 2023); Cameroon asks for more border troops after new Boko Haram attacks, VOA, May 31, 2023, available at https://www.voanews.com/a/cameroon-asks-for-more-border-troops-after-new-boko-haram-attacks/7116890.html (last visited Oct. 27, 2023); Children and armed conflict; Report of the Secretary-General [A/77/895–S/2023/363], UN General Assembly, UN Security Council, June 5, 2023, available at https://childrenandarmedconflict.un.org/document/secretary-general-annual-report-on-children-and-armed-conflict-2/; Cameroon: Events of 2022, Human Rights Watch, available at https://www.hrw.org/world-report/2023/country-chapters/cameroon (last visited Oct. 27, 2023).
[80] Cameroon's Large-Scale Boko Haram Attacks Leave Thousands Homeless, VOA News, Apr. 19, 2023, available at https://www.voanews.com/a/cameroon-s-large-scale-boko-haram-attacks-leave-thousands-homeless-/7057215.html (last visited Oct. 27, 2023); The situation in Central Africa and the activities of the United Nations Regional Office for Central Africa; Report of the Secretary-General [S/2023/389], U.N. Security Council, May 21, 2023, available at https://www.ecoi.net/en/file/local/2093063/N2313778.pdf.
[81] Cameroon, Global Center for the Responsibility to Protect, May 31, 2023, available at https://www.globalr2p.org/countries/cameroon/ (last visited Oct. 27, 2023).
[82] *Id.*
[83] Cameroon Humanitarian Needs Overview 2023 (March 2023), Reliefweb, May 11, 2023, available at https://reliefweb.int/report/cameroon/cameroon-humanitarian-needs-overview-2023-march-2023#:~:text=In%202023%2C%20one%20out%20of,)%2C%20returnees%2C%20or%20refugees. (last visited Oct. 27, 2023).
[84] Cameroon: Situation Report, OCHA, last updated June 7, 2023, available at https://reports.unocha.org/en/country/cameroon/ (last visited Oct. 27, 2023).
[85] Cameroon: Increase in cholera cases, 1, ACAPS, June 29, 2023, available at https://www.acaps.org/fileadmin/Data_Product/Main_media/20230629_ACAPS_Briefing_note_Cameroon_increase_in_cholera_cases.pdf.

secessionist insurgency, have contributed to significant displacement, and more than one million people are currently internally displaced in Cameroon.[86]

Haiti

Haiti was initially designated for TPS on January 21, 2010, based on extraordinary and temporary conditions that prevented nationals of Haiti from returning in safety.[87] Following the initial designation, TPS for Haiti was extended and redesignated from July 23, 2011, through January 22, 2013, based on extraordinary and temporary conditions.[88] Thereafter, TPS for Haiti was extended four times based on extraordinary and temporary conditions: (1) from January 23, 2013, through July 22, 2014;[89] (2) from July 23, 2014, through January 22, 2016;[90] (3) from January 23, 2016, through July 22, 2017;[91] and (4) from July 23, 2017, through January 22, 2018.[92] Subsequently, DHS announced the termination of the TPS designation of Haiti effective July 22, 2019.[93]

The termination of Haiti's 2011 TPS designation was the subject of litigation and a court order, and as a result, the termination had not taken effect.[94] DHS newly designated Haiti on the basis of extraordinary and temporary conditions effective August 3, 2021, through February 3, 2023.[95] On January 26, 2023, DHS extended and redesignated Haiti for TPS for 18 months from February 4, 2023, through August 3, 2024.[96]

As was noted in the last FRN, Haiti has been experiencing economic, security, political, and health crises simultaneously. Haitian gangs have been the primary source of violence and instability in Haiti and have posed an increasing threat as they expand their influence and geographic presence over portions of metropolitan Port-au-Prince.[97] Haitian political and business elites have long cultivated relationships with gang leaders to further their agendas and

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[86] Cameroon Multi-Country Office: Refugees and Internally Displaced Persons, UNHCR, June 8, 2023, available at https://reliefweb.int/map/cameroon/cameroon-multi-country-office-refugees-and-internally-displaced-persons-figures-available-31-may-2023 (last visited Oct. 27, 2023).
[87] *Designation of Haiti for Temporary Protected Status*, 75 FR 3476 (Jan. 21, 2010).
[88] *Extension and Redesignation of Haiti for Temporary Protected Status*, 76 FR 29000 (May 19, 2011).
[89] *Extension of the Designation of Haiti for Temporary Protected Status*, 77 FR 59943 (Oct. 1, 2012).
[90] *Extension of the Designation of Haiti for Temporary Protected Status*, 79 FR 11808 (Mar. 3, 2014).
[91] *Extension of the Designation of Haiti for Temporary Protected Status*, 80 FR 51582 (Aug. 25, 2015).
[92] *Extension of the Designation of Haiti for Temporary Protected Status*, 82 FR 23830 (May 24, 2017).
[93] *Termination of the Designation of Haiti for Temporary Protected Status*, 83 FR 2648 (Jan. 18, 2018).
[94] *Ramos v. Wolf*, 975 F.3d 872 (9th Cir. 2020), *petition for en banc rehearing* filed Nov. 30, 2020 (No. 18-16981)(district court's preliminary injunction against termination of six countries' TPS, including TPS for Haiti, remains in effect pending 9th Circuit consideration of plaintiffs' request for *en banc* rehearing of appellate panel decision to vacate the district court injunction); *Saget v. Trump*, No. 1:18-cv-1599 (E.D.N.Y. 2019) (injunction issued, but dismissed as moot, Oct. 15, 2021)); *NAACP v. DHS*, No. 18-cv-00239 (D. Md.); and *Centro Presente v. Trump*, No. 18-cv-10340 (D. Mass).
[95] *Designation of Haiti for Temporary Protected Status*, 86 FR 41863 (Aug. 3, 2021).
[96] *Extension and Redesignation of Haiti for Temporary Protected States*, 88 FR 5022 (Jan. 26, 2023).
[97] Diego Da Rin, *New Gang Battle Lines Scar Haiti as Political Deadlock Persists*, International Crisis Group (July 27, 2022), https://www.crisisgroup.org/latin-america-caribbean/haiti/new-gang-battle-lines-scar-haiti-political-deadlock-persists.

destabilize Haiti.[98] While elites often operationalize gangs, the gangs typically function as mercenaries responsive to the highest bidder.[99] Moreover, some gangs earn sufficient funds from kidnapping for ransom operations to function as independent criminal organizations.[100] At the same time, Haiti is confronting a humanitarian crisis, with many citizens having limited access to safety, healthcare, food, water, and economic opportunity. These circumstances continue to make return to Haiti dangerous for Haitian nationals living in the United States.

Somalia

Somalia was initially designated for TPS on September 16, 1991, on the basis of extraordinary and temporary conditions that prevented Somali nationals from safely returning.[101] Somalia's TPS designation has been consecutively extended since its initial designation. Somalia was redesignated for TPS in 2001 based on extraordinary and temporary conditions.[102] In 2012, Somalia was redesignated for TPS on the basis of extraordinary and temporary conditions and under the additional basis of ongoing armed conflict.[103] In 2021, DHS again redesignated Somalia on the basis of ongoing armed conflict and extraordinary and temporary conditions.[104] Most recently, the Secretary extended and redesignated Somalia on the basis of ongoing armed conflict and extraordinary and temporary conditions from March 18, 2023, through September 17, 2024.[105]

As was noted in the last FRN, the insurgent Islamist group al-Shabaab continues to conduct an armed insurgency against the Federal Government of Somalia, resulting in death, injury, and displacement of civilians.[106] Al-Shabaab has used suicide bombers, mortars, and IEDs to attack civilian and military targets throughout Somalia.[107] Somali women and girls are

[98] Diego Da Rin, *New Gang Battle Lines Scar Haiti as Political Deadlock Persists*, International Crisis Group (July 27, 2022), https://www.crisisgroup.org/latin-america-caribbean/haiti/new-gang-battle-lines-scar-haiti-political-deadlock-persists.
[99] D.C. Beer, *Chapter 3 Haiti: The Gangs of Cité Soleil*, PRISM: National Defense University, May 24, 2016, https://cco.ndu.edu/News/Article/780129/chapter-3-haiti-the-gangs-of-cit-soleil/.
[100] Jennifer Jelly and Tatiana Vasquez, *The Rise of Kidnappings for Ransom in Haiti*, The Counterterrorism Group, Dec. 13, 2021, https://www.counterterrorismgroup.com/post/the-rise-of-kidnappings-for-ransom-in-haiti.
[101] *Designation of Nationals of Somalia for Temporary Protected Status*, 56 FR 46804 (Sept. 16, 1991).
[102] *Extension and Redesignation of Somalia under Temporary Protected Status Program*, 66 FR 46288 (Sept. 4, 2001).
[103] *Extension and Redesignation of Somalia for Temporary Protected Status,* 77 FR 25723 (May 1, 2012).
[104] *Extension and Redesignation of Somalia for Temporary Protected Status*, 86 FR 38744 (July 22, 2021).
[105] *Extension and Redesignation of Somalia for Temporary Protected Status,* 88 FR 15434 (Mar. 13, 2023).
[106] UN Security Council, Report of the Secretary-General on children and armed conflict in Somalia [S/2022/397], May 16, 2022, pg. 3-5, available at https://www.ecoi.net/en/file/local/2076558/N2235204.pdf; National Counterterrorism Center, Counter Terrorism Guide, Terrorist Groups, Al-Shabaab, available at https://www.dni.gov/nctc/groups/al_shabaab.html (last visited Feb. 2, 2023); Claire Klobucista, Jonathan Masters, and Mohammed Aly Sergie, Backgrounder Al-Shabaab, Council of Foreign Relations, Dec. 6, 2022, available at https://www.cfr.org/backgrounder/al-shabaab (last visited Feb. 1, 2023).
[107] Chiara Torelli, Hiiran: 30 killed in three Al Shabaab suicide attacks, Action on Armed Violence, 14 Jan, Jan. 17, 2023, available at https://aoav.org.uk/2023/hiiran-30-killed-in-three-al-shabaab-suicide-attacks-14-jan/ (last visited Feb. 2, 2023).

disproportionately exposed to high levels of conflict-related sexual violence.[108] ISIS-Somalia also remains active, planning and carrying out suicide bombings, armed assaults, assassinations, and small arms attacks in the Federal Member State of Puntland and in the capital, Mogadishu.[109]

Interrelated climate, health, and food security challenges persist. The UN reports that 7.1 million people, accounting for 45 percent of the country, face at least "crisis" levels of food security, of which 2.1 million are experiencing even more serious "emergency" shortages that signify acute malnutrition and rising levels of death.[110] Compounding these challenges is the difficulty of providing critical humanitarian aid to affected communities. Internally displaced persons (IDPs) and other vulnerable populations have been particularly impacted.

South Sudan

South Sudan was initially designated for TPS on October 13, 2011, on the dual bases of ongoing armed conflict and extraordinary and temporary conditions that prevented nationals of South Sudan from safely returning.[111] Following the initial designation, DHS extended and redesignated South Sudan for TPS in 2013, 2014, and 2016.[112] In 2017, 2019, and 2020, DHS extended TPS for South Sudan based on ongoing armed conflict and extraordinary and temporary conditions.[113] In March 2022, DHS extended and redesignated South Sudan for TPS for 18 months based on ongoing armed conflict and extraordinary and temporary conditions.[114] Most recently, the Secretary extended and redesignated South Sudan on the basis of ongoing armed conflict and extraordinary and temporary conditions from November 4, 2023 through May 3, 2025.[115]

As was noted in the last FRN, the armed conflicts in South Sudan consist of fighting among various factions associated with the government, as well as between government forces and militant groups.[116] South Sudan faces "often violent political contestations," and the lack of stable government has facilitated ongoing violence that is "nearly always characterized by gross

[108] UNSOM, Women in Somalia Live Through Pain of Displacement and Trauma of Conflict-Related Sexual Violence, June 19, 2022, available at https://unsom.unmissions.org/women-somalia-live-through-pain-displacement-and-trauma-conflict-related-sexual-violence (last visited Feb. 2, 2023); U.S. Dept. of State, 2021 Country Reports on Human Rights Practices: Somalia, Apr. 12, 2022, available at https://www.state.gov/reports/2021-country-reports-on-human-rights-practices/somalia/ (last visited Feb. 2, 2023).
[109] U.S. Dept. of State, 2021 Country Reports on Human Rights Practices: Somalia, Apr. 12, 2022, available at https://www.state.gov/reports/2021-country-reports-on-human-rights-practices/somalia/ (last visited Feb. 2, 2023).
[110] UN News, Horn of Africa braces for 'explosion of child deaths' as hunger crisis deepens, June 7, 2022, available at https://news.un.org/en/story/2022/06/1119862 (last visited Jan. 19, 2023).
[111] *Designation of Republic of South Sudan for Temporary Protected Status,* 76 FR 63629 (Oct. 13, 2011).
[112] *Extension and Redesignation of South Sudan for Temporary Protected Status,* 78 FR 1866 (Jan. 9, 2013); *Extension and Redesignation of South Sudan for Temporary Protected Status,* 79 FR 52019 (Sept. 2, 2014); and *Extension and Redesignation of South Sudan for Temporary Protected Status,* 81 FR 4051 (Jan. 25, 2016).
[113] *Extension of South Sudan for Temporary Protected Status,* 82 FR 44205 (Sept. 21, 2017); *Extension of the Designation of South Sudan for Temporary Protected Status,* 84 FR 13688 (Apr. 5, 2019); and *Extension of the Designation of South Sudan for Temporary Protected Status,* 85 FR 69344 (Nov. 2, 2020).
[114] *Extension and Redesignation of South Sudan for Temporary Protected Status,* 87 FR 12190 (Mar. 3, 2022).
[115] *Extension and Redesignation of South Sudan for Temporary Protected Status,* 88 FR 60971 (Sept. 6, 2023).
[116] Human Rights Watch, South Sudan: Events of 2022, https://www.hrw.org/world-report/2023/country-chapters/south-sudan (last visited Aug. 22, 2023).

human rights violations that [have] targeted civilians and caused mass displacements" in parts of the country.[117] Members of government and opposition forces, associated armed militia groups, and ethnic groups are reported to have committed torture and other ill-treatment in conflict zones.[118] The "simmering ethnic conflict" in parts of South Sudan has resulted in dire humanitarian consequences, including significant displacement and reports of human rights violations and abuses, including those involving the killing of civilians, arbitrary arrests or unjust detentions, looting and destruction of civilian property, physical abuse, forced recruitment, and gender-based violence.[119]

Floods in South Sudan have destroyed crops, homes, schools, health care centers, and boreholes for water access, and efforts to provide relief have been stymied by violence, inaccessibility, and gaps in resources and infrastructure.[120] As of March 2023, approximately 7.8 million South Sudanese were projected to face "Crisis" levels of acute food insecurity, or worse, between April and July 2023.[121] An estimated 9.4 million of South Sudan's total population of more than 12 million people was in need of humanitarian assistance,[122] with multiple factors complicating the provision of relief.

Sudan

Sudan was initially designated for TPS on November 4, 1997, on the dual bases of ongoing armed conflict and extraordinary and temporary conditions that prevented nationals of Sudan from safely returning.[123] Sudan's designation was extended and/or it was redesignated numerous times from its initial designation in 1997. Subsequently, DHS announced the termination of Sudan's TPS designation, with an effective date of November 2, 2018.[124] The termination decision was the subject of litigation and a court order, and as a result, the termination had not taken effect. DHS newly designated Sudan on the basis of extraordinary and temporary conditions effective April 19, 2022, through October 19, 2023.[125] On August 21, 2023, DHS

[117] U.N. Human Rights Council, Report of the Commission on Human Rights in South Sudan, pg. 3, U.N. Doc. A/HRC/52/26, Jan. 31, 2023, https://www.ohchr.org/sites/default/files/documents/hrbodies/hrcouncil/sessions-regular/session52/A-HRC-52-26-AdvanceEditedVersion.pdf.
[118] U.S. Dept. of State, 2022 Country Reports on Human Rights: South Sudan, pg. 5, Mar. 20, 2023, https://www.state.gov/wp-content/uploads/2023/03/415610_SOUTH-SUDAN-2022-HUMAN-RIGHTS-REPORT.pdf.
[119] U.S. Dept. of State, 2022 Country Reports on Human Rights: South Sudan, pg. 27, Mar. 20, 2023, https://www.state.gov/wp-content/uploads/2023/03/415610_SOUTH-SUDAN-2022-HUMAN-RIGHTS-REPORT.pdf.
[120] UNOCHA, South Sudan: Flooding Situation Report No. 1, pg. 1, Oct. 12, 2022, https://reliefweb.int/report/south-sudan/south-sudan-flooding-situation-report-no-1-31-october-2022 (last visited May 19, 2023).
[121] U.S. Agency for International Development (USAID), South Sudan – Complex Emergency Fact Sheet #3, Fiscal Year 2023, pg. 2, Mar. 31, 2023, https://reliefweb.int/report/south-sudan/south-sudan-complex-emergency-fact-sheet-3-fiscal-year-fy-2023 (last visited May 19, 2023). The "Crisis" level of food security is the third level on the five level Integrated Food Security Phase Classification (IPC) scale, which ranges from "Minimal" (IPC 1) to "Famine" or "Catastrophe" (IPC 5).
[122] U.S. Agency for International Development (USAID), South Sudan – Complex Emergency Fact Sheet #3, Fiscal Year 2023, pg. 1, Mar. 31, 2023, https://reliefweb.int/report/south-sudan/south-sudan-complex-emergency-fact-sheet-3-fiscal-year-fy-2023 (last visited May 19, 2023).
[123] *Designation of Sudan Under Temporary Protected Status*, 62 FR 59737 (Nov. 4, 1997).
[124] *Termination of the Designation of Sudan for Temporary Protected Status*, 82 FR 47228 (Oct. 11, 2017).
[125] *Designation of Sudan for Temporary Protected Status*, 87 FR 23202 (Apr. 19, 2022).

extended and redesignated Sudan for TPS for 18 months from October 20, 2023, through April 19, 2025.

Based on DHS' review of the current country conditions in Sudan, the Secretary determined that an 18-month TPS extension is warranted because conditions supporting Sudan's TPS designation remain due to the ongoing armed conflict and continuing extraordinary and temporary conditions. As was noted in the last FRN, Sudan is enduring an ongoing armed conflict and a humanitarian crisis in which millions of individuals are exposed to violence, illness, and forced displacement. On April 15, 2023, violent armed conflict between the Sudanese Armed Forces (SAF) and the Rapid Support Forces (RSF)[126] erupted in Sudan, killing hundreds of people and driving more than 700,000 persons to flee to other countries.[127]

The armed conflict that erupted on April 15, 2023, started in the capital, Khartoum, but has spread across Sudan.[128] Fighting between the SAF and the RSF has included the use of tanks, artillery, rockets, and, in the case of the SAF, air-delivered munitions, which has resulted in harm to civilians in Khartoum and elsewhere.[129] The UN Assistant Secretary for Humanitarian Affairs reported that the humanitarian crisis in Sudan was "quickly turning into a catastrophe."[130]

"Even before the current fighting began, humanitarian needs across Sudan had reached record levels, with 15.8 million people – about a third of the total population – requiring humanitarian assistance this year [2023]. The latest violence has led to acute shortages of food, water, medicines and fuel, while the price of essential items, including transport, have skyrocketed."[131]

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[126] Rapid Support Forces (RSF) is a paramilitary force established in 2013 by former President al-Bashir. It was "fashioned out of Janjaweed militias and was assembled in response to anti-government rebel movements in Darfur." It has also been accused of "a myriad of human rights abuses in Darfur and elsewhere." The Rapid Support Forces and the Escalation of Violence in Sudan, ACLED, July 2, 2019, acleddata.com/2019/07/02/the-rapid-support-forces-and-the-escalation-of-violence-in-sudan/ (last visited May 10, 2023). "In January 2015, the Rapid Support Forces, which had been operating under the command of the National Intelligence Security Services, became part of the regular government forces through a constitutional amendment. In April 2015, the RSF were placed under the command of the Presidency. In January 2017, the Parliament passed the Rapid Support Forces Act, integrating those forces into the Sudan Armed Forces." Report of the Secretary – General on children and armed conflict in Sudan, UN Security Council, March 6, 2017, pg. 3, https://reliefweb.int/report/sudan/report-secretary-general-children-and-armed-conflict-sudan-s2017191-enar (last visited July 24, 2023).

[127] Aidan Lewis, *What is happening in Sudan? Fighting in Khartoum explained,* updated July 13, 2023, https://www.reuters.com/world/africa/whats-behind-sudans-crisis-2023-04-17/ (last visited July 24, 2023); Dozens of civilians are dead as rival military factions batter for control of Sudan, National Public Radio, April 17, 2023, https://www.npr.org/2023/04/16/1170289462/sudans-army-and-rsf-are-doing-battle-leaving-56-civilians-dead (last visited April 17, 2023).

[128] Human Rights Watch, Sudan: Explosive Weapons Harming Civilians, May 4, 2023, https://www.hrw.org/news/2023/05/04/sudan-explosive-weapons-harming-civilians (last visited May 10, 2023).

[129] Human Rights Watch, Sudan: Explosive Weapons Harming Civilians, May 4, 2023, https://www.hrw.org/news/2023/05/04/sudan-explosive-weapons-harming-civilians (last visited May 10, 2023).

[130] Assistant Secretary-General for Humanitarian Affairs and Deputy Emergency Relief Coordinator Ms. Joyce Msuya: Briefing to the Security Council on the Humanitarian Situation in Sudan, UNOCHA, April 25, 2023, https://reliefweb.int/report/sudan/assistant-secretary-general-humanitarian-affairs-and-deputy-emergency-relief-coordinator-ms-joyce-msuya-briefing-security-council-humanitarian-situation-sudan-new-york-25-april-2023 (last visited April 26, 2023).

[131] UN News, Background to a crisis: In Sudan, the stakes are high for the whole of Africa, April 28, 2023, https://news.un.org/en/story/2023/04/1136187?gclid=CjwKCAjwge2iBhBBEiwAfXDBR2pyoM7HB8ImtmbdANXbBou4gGeMYaruPqrxoL9aal25EC8sI52TpRoCnwwQAvD_BwE (last visited May 10, 2023).

Prior to the recent conflict, there were 3.8 million internally displaced persons (IDPs) in Sudan, and this figure has increased since the conflict began in April 2023.[132] Living conditions for IDPs remain dire, as "IDPs and [vulnerable] residents were displaced multiple times; they were traumatized, physically abused, injured; or lost family members, personal belongings, shelters, villages and access to land, water points and firewood collection."[133] UNOCHA reported in November 2022 that the majority of IDPs continue to reside in temporary sites, and are unable to return to their homes or previous displacement sites due to security concerns.[134]

Ukraine

Ukraine was initially designated for TPS on April 19, 2022, on the basis of an ongoing armed conflict and extraordinary and temporary conditions in Ukraine that prevented nationals of Ukraine from returning in safety.[135] On August 21, 2023, DHS extended and redesignated Ukraine for TPS for 18 months from October 20, 2023, through April 19, 2025, based on ongoing armed conflict and extraordinary and temporary conditions.[136]

On February 24, 2022, Russia massively expanded its unprovoked military invasion of Ukraine, marking the largest conventional military action in Europe since World War II.[137] As was noted in the last FRN, there is widespread fear and flight of Ukrainian nationals as Russia's forces have continued to engage in significant, sustained bombardment of major cities across the country, including attacks on Ukraine's capital, Kyiv.[138] Members of Russia's forces have also committed war crimes and the crimes against humanity of murder, torture, rape, and, alongside other Russian officials, deportation of population.[139] This ongoing armed conflict poses a serious threat to the safety of nationals returning to Ukraine. Extraordinary and temporary

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[132] International Organization for Migration (IOM), DTM Sudan – Situation Report (16), Aug 8, 2023, https://dtm.iom.int/reports/dtm-sudan-situation-report-16 (last visited Aug. 9, 2023).
[133] Humanitarian Needs Overview Sudan 2023, UNOCHA, November 2, 2022, Pg. 31, https://reliefweb.int/report/sudan/sudan-humanitarian-needs-overview-2023-november-2022 (last visited April 7, 2023).
[134] Humanitarian Needs Overview Sudan 2023, UNOCHA, November 2, 2022, Pg. 31, https://reliefweb.int/report/sudan/sudan-humanitarian-needs-overview-2023-november-2022 (last visited April 7, 2023).
[135] *Designation of Ukraine for Temporary Protected Status*, 87 FR 23211 (April 19, 2022).
[136] *Extension and Redesignation of Ukraine for Temporary Protected Status*, 88 FR 56872 (Aug. 21, 2023).
[137] "Russia invades Ukraine on multiple fronts in 'brutal act of war'," *PBS,* Feb. 24, 2022, available at https://www.pbs.org/newshour/world/russia-invades-ukraine-on-multiple-fronts-in-brutal-act-of-war (last visited Mar. 1, 2022); Natalia Zinets and Aleksandar Vasovic, "Missiles rain down around Ukraine," *Reuters*, Feb. 24, 2022, available at https://www.reuters.com/world/europe/putin-orders-military-operations-ukraine-demands-kyiv-forces-surrender-2022-02-24/ (last visited Mar. 1, 2022).
[138] Amnesty Int'l, Amnesty International Report 2022/23: The State of the World's Human Rights, Ukraine, 2022, Mar. 27, 2023, available at https://www.ecoi.net/en/document/2089403.html (last visited May 8, 2023); ACLED – Armed Conflict Location & Event Data Project, War in Ukraine: One Year On, Nowhere Safe, Mar. 1, 2023, available at https://acleddata.com/2023/03/01/war-in-ukraine-one-year-on-nowhere-safe/ (last visited May 8, 2023).
[139] Antony J. Blinken, U.S. Sec'y of State, Virtual Remarks on Russia's Accountability for the Crimes in Ukraine, U.S. Dept. of State (Mar. 31, 2023) available at: https://ua.usembassy.gov/secretary-antony-j-blinken-virtual-remarks-on-russias-accountability-for-the-crimes-in-ukraine/ (last visited May 4, 2023); Amnesty Int'l, Amnesty International Report 2022/23: The State of the World's Human Rights, Ukraine, at 377 – 82, available at https://www.ecoi.net/en/document/2089403.html (last visited May 4, 2023); https://ua.usembassy.gov/crimes-against-humanity-in-ukraine/; https://www.state.gov/war-crimes-by-russias-forces-in-ukraine/.

conditions, including destroyed infrastructure, lack of access to healthcare, and displacement continue to prevent Ukrainian nationals from returning to their homes in safety.

Venezuela

Venezuela was initially designated for TPS on the basis of extraordinary and temporary conditions that prevented nationals of Venezuela from returning in safety.[140] The TPS designation was extended for 18 months on September 8, 2022.[141] On October 3, 2023, DHS extended TPS for Venezuela 18 months, from March 11, 2024, through September 10, 2025, and separately redesignated Venezuela for TPS for 18 months, from October 3, 2023, through April 2, 2025.[142]

As was noted in the last FRN, Venezuela continues to face a severe humanitarian emergency due to a political and economic crisis, as well as human rights violations and abuses and high levels of crime and violence, that impacts access to food, medicine, healthcare, water, electricity, and fuel, and has led to high levels of poverty. Additionally, Venezuela experienced heavy rainfall in the spring and summer of 2023 which triggered flooding and landslides. Given the current conditions in Venezuela, these issues contribute to the country's existing challenges.

Venezuela is experiencing "an unprecedented political, economic, and humanitarian crisis."[143] "Venezuela is suffering one of the worst humanitarian crises in the history of the Western Hemisphere," which has been characterized by "[h]igh levels of poverty, food insecurity, malnutrition, and infant mortality, together with frequent electricity outages and the collapse of health infrastructure."[144] Though there were some positive developments in Venezuela in 2022 "as the economy stabilized and showed signs of economic growth," the effects of these changes were not felt across the Venezuelan population and did not offset the impact of the large-scale economic contraction which resulted in significant humanitarian challenges that continue today and will take time to address.[145]

Yemen

Yemen was initially designated for TPS on September 3, 2015, based on ongoing armed conflict that prevented nationals of Yemen from returning to Yemen in safety.[146] In 2017, DHS extended

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[140] *Designation of Venezuela for Temporary Protected Status and Implementation of Employment Authorization for Venezuelans Covered by Deferred Enforced Departure*, 86 FR 13574 (Mar. 9, 2021).
[141] *Extension of the Designation of Venezuela for Temporary Protected Status*, 87 FR 55024 (Sept. 8, 2022).
[142] *Extension and Redesignation of Venezuela for Temporary Protected Status*, 88 FR 68130 (Oct. 3, 2023).
[143] Clare Ribando Seelke, Rebecca M. Nelson, Rhoda Margesson, & Phillip Brown, Venezuela: Background and U.S. Relations, Congressional Research Service (CRS), p.1, Dec. 6, 2022, available at https://crsreports.congress.gov/product/pdf/R/R44841 (last visited Jul. 7, 2023).
[144] Michael Penfold & Cynthia J. Arnson, Overcoming Barriers to Humanitarian Aid in Venezuela, Wilson Center, p.1, Mar. 2023, available at https://www.wilsoncenter.org/sites/default/files/media/uploads/documents/OVERCOMING%20BARRIERS%20TO%20HUMANITARIAN%20AID%20IN%20VENEZUELA_0.pdf (last visited Aug. 10, 2023).
[145] United Nations Office for the Coordination of Humanitarian Affairs (OCHA), Venezuela Humanitarian Fund Annual Report 2022, p.6, Jun. 14, 2023, available at https://www.unocha.org/publications/report/venezuela-bolivarian-republic/venezuela-humanitarian-fund-annual-report-2022 (last visited Aug. 10, 2023).
[146] *Designation of Republic of Yemen for Temporary Protected Status*, 80 FR 53319 (Sept. 3, 2015).

the TPS designation of Yemen and redesignated Yemen for TPS on the dual bases of ongoing armed conflict and extraordinary and temporary conditions.[147] DHS extended Yemen's TPS designation in 2018[148] and 2020[149] because the statutory bases of ongoing armed conflict and extraordinary and temporary conditions persisted. DHS extended and redesignated Yemen for TPS based on ongoing armed conflict and extraordinary and temporary conditions in 2021.[150] On January 3, 2023, DHS extended and redesignated Yemen for TPS for 18 months from March 4, 2023, through September 3, 2024, based on ongoing armed conflict and extraordinary and temporary conditions.[151]

The Secretary extended and redesignated Yemen for TPS because the ongoing armed conflict deepened Yemen's difficult economic and humanitarian situation. As was noted in the last FRN, the armed conflict directly affects the physical security of the civilian population, including from attacks involving artillery, missiles, mortars, rockets, and landmines.[152] Over 4 million people have been internally displaced within Yemen, 286,000 of them in 2021 alone;[153] children account for half of the IDP population, approximately 2 million.[154] Terrorist organizations operating inside of Yemen also pose a danger to civilians.[155] The Secretary determined that the ongoing armed conflict and stream of challenges that flow from it have not been resolved. Civilians continue to be killed and displacement is substantial and widespread. Deteriorating humanitarian conditions and protracted internal conflict continue to adversely affect Yemen's civilian population.

Section 4.5 Designations under INA § 244(b)(1)

The Secretary did not newly designate any countries for TPS in CY 2023.

Section 4.6 Terminations Under INA § 244(b)(3)(B)

The Secretary did not terminate the TPS designations of any foreign states, or parts thereof, in CY 2023. See discussion below on DHS's compliance with court orders that relate to certain TPS termination decisions made by a former Secretary or a former Acting Secretary in previous years.

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[147] *Extension and Redesignation of Republic of Yemen for Temporary Protected Status*, 82 FR 859 (Jan. 4, 2017).
[148] *Extension of the Designation of Yemen for Temporary Protected Status*, 83 FR 40307 (Aug. 14, 2018).
[149] *Extension of the Designation of Yemen for Temporary Protected Status*, 85 FR 12313 (Mar. 2, 2020).
[150] *Extension and Redesignation of Yemen for Temporary Protected Status*, 86 FR 36295 (July 9, 2021).
[151] *Extension and Redesignation of Yemen for Temporary Protected Status*, 88 FR 94 (Jan. 3, 2023).
[152] World Report 2022 – Yemen Events of 2021, Human Rights Watch World Report, available at: https://www.hrw.org/world-report/2022/country-chapters/yemen?gclid=EAIaIQobChMIo86n6cvx-QIVL3FvBB3bpQduEAAYASAAEgI9C_D_BwE (last visited Oct. 21, 2022).
[153] Yemen Fact Sheet, United Nations High Commissioner for Refugees (UNHCR), June 2022, available at: https://reporting.unhcr.org/document/3030 (last visited Oct. 21, 2022).
[154] UNICEF Yemen Humanitarian Situation Report: January - December 2021, Reliefweb, Mar. 16, 2022, available at: https://reliefweb.int/report/yemen/unicef-yemen-humanitarian-situation-report-january-december-2021-enar (last visited Oct. 21, 2022).
[155] Yemen's Tragedy: War, Stalemate, and Suffering, Council on Foreign Relations, Oct. 21, 2022, available at: https://www.cfr.org/backgrounder/yemen-crisis (last visited Dec. 6, 2022).

Section 4.7 Preliminary Injunction Orders and Order to Stay Proceedings

This section provides details about TPS actions announced by DHS in CY 2023, to ensure continued compliance with the preliminary injunction orders of the U.S. District Court for the Northern District of California in *Ramos, et al. v. Nielsen, et al.*, 336 F. Supp. 3d 1075 (N.D. Cal. 2018) and with the order of the U.S. District Court for the Northern District of California to stay proceedings in *Bhattarai v. Nielsen*, No. 19-cv-00731 (N.D. Cal. Mar. 12, 2019).

Preliminary injunction order in *Ramos v. Nielsen*

In its October 3, 2018, order, the U.S. District Court for the Northern District of California enjoined DHS from implementing or enforcing the determinations to terminate TPS for El Salvador, Haiti, Nicaragua, and Sudan pending resolution of the case on the merits.[156] As a result, DHS could not effectuate the termination of TPS for these countries while the order was in effect. The order also required DHS to continue the validity of documentation showing lawful status and work authorization for affected, eligible TPS beneficiaries from those countries. DHS published seven FRNs, on October 31, 2018,[157] March 1, 2019,[158] November 4, 2019, [159] December 9, 2020,[160] September 10, 2021,[161] November 16, 2022,[162] and December 14, 2023,[163] to comply with the court's order. On September 16, 2021, a panel of the U.S. Court of Appeals for the 9th Circuit vacated the *Ramos* preliminary injunction. *Ramos, et al. v. Nielsen, et al.*, No. 18-16981 (9th Cir., Sept. 14, 2020). The plaintiffs filed a request seeking *en banc* review of the panel's decision, and on February 16, 2021, the 9th Circuit stayed plaintiffs' request for rehearing *en banc* for a 60-day period. The stay was extended while the case was placed in mediation. The parties were unable to reach a settlement through mediation and on October 26, 2022, the case was returned to the 9th Circuit Court of Appeals, effectively lifting the stay on Plaintiff's request for a rehearing *en banc.* On February 10, 2023, the petition for rehearing *en banc* was granted. On June 29, 2023, the Ninth Circuit granted the Secretary's motion for voluntary dismissal of the appeal of the injunction. *Ramos v. Wolf*, No. 18–16981 (9th Cir., June 29, 2023). The *Ramos* case was then remanded back to district court, where the parties agreed to consolidate the case with *Bhattarai.* Per that stipulation, Plaintiffs filed an amended class action complaint on August 24, 2023. On December 28, 2023, the district court granted the Secretary's motion to dismiss *Ramos*.[164]

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[156] *Ramos v. Nielsen*, No. 18-cv-01554 (N.D. Cal. Oct. 3, 2018).
[157] *See* 83 FR 54764 (October 31, 2018) (compliance with the preliminary injunction order of the U.S. District Court for the Northern District of California in *Ramos v. Nielsen*, No. 18-cv-01554 (N.D. Cal. Oct. 3, 2018)).
[158] *See* 84 FR 7103 (Mar. 1, 2019) (compliance with the preliminary injunction order of the U.S. District Court for the Northern District of California in *Ramos v. Nielsen*, No. 18-cv-01554 (N.D. Cal. Oct. 3, 2018)).
[159] *See* 84 FR 59403 (Nov. 4, 2019) (compliance with the preliminary injunction order of the U.S. District Court for the Northern District of California in *Ramos v. Nielsen*, No. 18-cv-01554 (N.D. Cal. Oct. 3, 2018)).
[160] 86 FR 50725 (Sept. 10, 2021).
[161] *See* 86 FR 50725 (Sept. 10, 2021) (compliance with the preliminary injunction order of the U.S. District Court for the Northern District of California in *Ramos v. Nielsen*, No. 18-cv-01554 (N.D. Cal. Oct. 3, 2018)).
[162] *See* 87 FR 68717 (Nov. 16, 2022) (compliance with the preliminary injunction order of the U.S. District Court for the Northern District of California in *Ramos v. Nielsen*, No. 18-cv-01554 (N.D. Cal. Oct. 3, 2018)).
[163] *See* 88 FR 86665 (Dec. 14, 2023) (compliance with the preliminary injunction order of the U.S. District Court for the Northern District of California in *Ramos v. Nielsen*, No. 18-cv-01554 (N.D. Cal. Oct. 3, 2018)).
[164] *Ramos v. Nielsen*, 18-cv-01554 (N.D. Cal. Dec. 28, 2023).

The court order in *Bhattarai v. Nielsen*

On May 1, 2019, DHS announced actions to ensure compliance with the order of the U.S. District Court for the Northern District of California to stay proceedings in *Bhattarai*.[165] The claims raised in *Bhattarai* were similar to, and could be impacted by, the resolution of the claims being litigated in *Ramos v. Nielsen, et al.*, 336 F. Supp. 3d 1075 (N.D. Cal. 2018). For that reason, DHS stipulated that it would not implement or enforce the decision to terminate TPS for Honduras or Nepal[166] pending the resolution of the *Ramos* appeal, or by other order of the court. Beneficiaries under the TPS designations for Honduras and Nepal would retain their TPS, provided that a noncitizen's TPS is not withdrawn because of ineligibility. On August 2, 2023, *Bhattarai* was consolidated with *Ramos*.

Continued compliance with the court orders

DHS complied with the various court orders described above by publishing appropriate FRNs that continued TPS for eligible beneficiaries and continued their TPS-related employment authorization and status documentation while the litigation proceeded. In 2023, a combined FRN continued DHS compliance with all the relevant court orders in *Ramos* and *Bhattarai*:

- 87 FR 68717 (November 16, 2022)

This FRN explained that beneficiaries under the TPS designations for El Salvador, Haiti, Honduras, Nepal, Nicaragua, and Sudan would retain their TPS while the various court orders that covered each country remained in effect, provided that a noncitizen's TPS was not withdrawn because of individual ineligibility. The FRN automatically extended TPS and TPS-related documentation, such as Employment Authorization Documents, through June 30, 2024, for affected beneficiaries who maintain their individual TPS eligibility.

[165] *See* 84 FR 20647 (May 10, 2019) (compliance with the order of the U.S. District Court for the Northern District of California to stay proceedings in *Bhattarai v. Nielsen*, No. 19-cv-00731 (N.D. Cal. Mar. 12, 2019)). The *Federal Register* notices published on November 4, 2019, December 9, 2020, and September 10, 2021, also addressed the continuation of TPS and TPS-related documentation for eligible beneficiaries of TPS for Nepal. *See* 84 FR 59403 (November 4, 2019); 85 FR 79208 (December 9, 2020).

[166] *See* Termination of the Designation of Nepal for Temporary Protected Status, 83 FR 23705 (May 22, 2018); Termination of the Designation of Honduras for Temporary Protected Status, 83 FR 26074 (June 5, 2018).

Appendix A: TPS Beneficiaries' Immigration Status at Initial Filing by Country

Table No. 1: Afghanistan, Burma, Cameroon, El Salvador, Ethiopia, Haiti, Honduras, Nepal

Immigration Status at Filing	Afghanistan	Burma	Cameroon	El Salvador	Ethiopia	Haiti	Honduras	Nepal
A1	0	0	0	7	4	50	2	3
A12	0	2	2	260	0	138	22	1
A17	0	0	0	0	0	0	1	0
A2	0	0	10	8	2	38	3	6
A3	0	0	0	1	0	2	3	1
A32	0	0	0	0	0	7	0	0
A33	0	0	0	0	0	2	0	0
AA2	0	0	1	0	0	3	0	0
AA3	0	0	0	0	0	3	0	0
AA6	0	0	0	0	0	4	0	0
AA8	0	0	0	0	0	2	0	0
ABD	0	0	1	0	0	6	0	0
ABS	0	1	38	7	9	2,517	2	1
AO	8	8	26	0	81	2,491	0	0
AS	177	190	478	104	300	25,849	19	1,176
AS1	2	0	0	0	1	11	0	0
AS2	0	0	0	0	0	5	0	0
AS3	0	0	0	0	0	9	0	0
AS6	0	0	1	0	1	140	0	1
AS7	0	0	0	0	0	12	0	1
AS8	0	0	0	0	0	32	0	0
ASR	0	0	1	0	0	7	0	0
ASY	3	1	12	44	10	1,365	0	2
AY	0	0	3	0	1	172	0	0
B1	0	17	15	13	22	600	29	13
B11	0	0	0	1	0	0	0	0
B12	0	0	0	1	0	0	0	0
B16	0	0	0	0	0	3	0	0
B1B	0	1	0	0	0	1	0	0
B2	3	101	62	133	189	9,522	211	79
B21	0	0	0	0	0	3	0	0
B22	0	0	0	0	0	3	0	0
B23	0	0	0	0	0	1	0	0
B24	0	0	0	0	0	1	0	0
B25	0	0	0	0	0	1	0	0
B26	0	0	0	0	1	4	0	0
B27	0	0	0	0	0	2	0	0
B31	0	0	0	0	0	1	0	0
B32	0	0	0	0	0	1	0	0
B36	0	0	0	0	0	2	0	0

Immigration Status at Filing	Afghanistan	Burma	Cameroon	El Salvador	Ethiopia	Haiti	Honduras	Nepal
BC1	0	0	0	0	0	1	0	0
BCC	0	0	0	0	0	41	0	0
BCD	0	0	0	0	0	5	0	0
BX2	0	0	0	0	0	1	0	0
C1	0	1	0	0	0	36	11	2
C2	0	0	0	0	0	3	0	0
C21	0	0	0	0	0	4	0	0
C22	0	0	0	0	0	2	0	0
C24	0	0	0	0	0	1	0	0
C26	0	0	0	0	0	3	0	0
C27	0	0	0	0	0	3	0	0
C29	0	0	1	0	0	1	0	0
C3	0	0	0	0	0	9	0	0
C31	0	0	0	0	0	1	0	0
C32	0	0	0	0	0	1	0	0
C33	0	0	1	0	0	1	0	1
C4	0	0	0	2	0	58	0	0
CB1	0	0	0	1	0	1	0	0
CB2	0	0	0	0	0	5	0	0
CB7	0	0	0	0	0	4	0	0
CF1	0	1	0	0	0	2	0	0
CF2	0	0	0	0	0	2	0	1
CH6	0	0	0	0	0	179	0	0
CP	1	0	0	1	0	96	2	1
CR1	0	1	2	0	1	48	0	0
CR2	0	0	0	0	0	2	0	0
CR6	0	0	0	0	0	17	0	0
CR7	0	0	0	0	0	6	0	0
CS2	0	0	0	0	0	2	0	0
CW1	0	0	0	1	0	0	0	6
CW2	0	0	0	0	0	0	0	4
CX1	0	0	1	0	0	1	0	0
CX6	0	0	0	0	0	4	0	0
D	0	0	0	0	0	1	0	0
D1	0	0	0	1	0	6	1	0
DA	0	0	1	137	2	215	51	6
DAS	0	0	1	0	0	1	0	0
DE	0	0	0	1	0	5	0	0
DED	0	0	0	0	0	11	0	0
DHR	0	0	0	0	0	71	0	0

Immigration Status at Filing	Afghanistan	Burma	Cameroon	El Salvador	Ethiopia	Haiti	Honduras	Nepal
DT	13	0	8	1	0	8,168	0	0
DT1	0	0	0	0	0	2	0	0
DT2	0	0	0	0	0	1	0	0
DT3	0	0	0	0	0	1	0	0
DV1	0	0	0	1	0	0	0	0
E1	0	0	0	6	0	1	2	0
E11	0	0	0	0	0	1	0	0
E2	0	0	1	1	0	0	0	1
E31	0	0	0	0	0	6	0	0
E36	0	0	0	0	0	1	0	0
E37	0	0	0	0	0	1	0	0
E56	0	0	0	0	0	1	0	0
EB1	0	0	0	0	1	1	0	0
EB2	0	0	0	0	0	1	0	1
EB3	0	0	0	0	0	1	0	0
EF	0	0	0	0	0	3	0	0
EP	0	0	0	0	0	16	0	0
ERF	0	0	0	0	0	2	0	0
ERP	0	0	0	0	0	2	0	0
EW8	0	0	0	0	0	1	0	0
EWI	1	0	16	3,971	2	3,023	3,622	126
F1	49	860	234	5	850	812	21	1,970
F11	0	0	1	0	0	9	0	0
F16	0	0	0	0	0	1	0	0
F2	3	45	9	1	28	50	3	399
F21	0	0	0	0	0	7	0	0
F22	0	0	0	0	0	1	0	0
F24	0	0	0	0	0	4	0	0
F25	0	0	0	0	0	1	0	0
F26	0	0	0	0	0	1	0	0
F27	0	0	0	0	0	1	0	0
F29	0	1	0	0	0	1	0	0
F31	0	0	0	0	0	8	0	0
F33	0	0	0	0	0	1	0	0
F36	0	0	0	0	0	2	0	0
F41	0	1	1	0	0	14	0	0
F46	0	0	0	0	0	3	0	0
F48	0	0	0	0	0	1	0	0
FX1	0	0	0	0	0	2	0	0
FX3	0	0	0	0	0	1	0	0

Immigration Status at Filing	Afghanistan	Burma	Cameroon	El Salvador	Ethiopia	Haiti	Honduras	Nepal
G1	0	2	0	1	2	6	1	4
G2	0	0	1	0	0	1	0	0
G4	1	0	5	0	6	6	0	5
G5	0	0	0	0	0	4	0	2
GB	0	0	0	0	0	1	0	1
GT	0	0	0	0	0	2	1	0
H1B	0	39	5	10	32	176	6	555
H2	0	0	0	15	0	5	7	0
H2A	0	0	0	10	0	13	2	2
H2B	0	0	0	23	0	26	15	5
H3	0	0	0	0	0	2	0	0
H4	1	5	5	2	10	6	4	218
HA6	0	0	0	0	0	16	0	0
HA8	0	0	0	0	0	2	0	0
HA9	0	0	0	0	0	2	0	0
HB6	1	0	0	0	0	87	0	0
HB8	0	0	0	0	0	6	0	0
HC6	0	0	0	0	0	1	0	0
HD6	0	0	0	0	0	1	0	0
HH6	0	0	0	0	0	50	0	0
I1	0	0	1	0	0	0	0	0
IB0	0	0	1	0	0	3	0	0
IB1	0	0	0	0	0	12	1	0
IB2	0	0	0	0	0	1	0	0
IB5	0	0	1	0	1	1	0	0
IB6	0	0	1	0	0	1	0	0
IJ	0	2	10	0	7	93	0	1
IR0	0	0	2	1	0	14	0	0
IR1	0	0	6	3	0	103	0	1
IR2	0	0	0	0	0	10	0	0
IR5	0	0	0	1	1	5	0	0
IR6	0	0	1	0	1	36	0	0
IR7	0	0	1	0	0	2	0	0
IW1	0	0	0	0	0	2	0	0
J1	38	92	14	3	27	69	4	24
J2	12	8	5	0	17	26	1	22
J2S	0	0	0	0	2	8	0	0
K1	0	1	0	0	3	87	0	0
K2	0	0	0	0	0	33	1	0
K3	0	0	2	3	0	47	2	1

Immigration Status at Filing	Afghanistan	Burma	Cameroon	El Salvador	Ethiopia	Haiti	Honduras	Nepal
K4	0	0	0	0	0	11	0	0
L1	0	0	0	1	1	1	0	0
L1A	0	1	0	2	0	1	0	2
L1B	0	0	0	0	0	0	0	2
L2	0	0	0	1	0	0	0	1
L2S	0	0	0	0	1	0	0	0
LB2	0	0	0	0	0	1	0	0
M1	0	1	0	0	1	2	1	0
M83	0	0	0	0	0	1	0	0
N1	0	0	0	20	0	9	8	2
N57	0	0	0	0	0	1	0	0
N8	0	0	0	0	0	1	0	0
O1	0	0	0	1	1	4	0	1
O2	0	0	0	0	0	1	0	0
O3	0	0	0	0	0	0	0	1
OAR	3,488	0	0	0	0	1	0	0
OP	0	0	0	1	0	3	2	0
OTHER	64	391	130	9,344	26	13,090	1,314	188
P1	0	0	0	1	10	2	0	0
P1A	0	0	0	0	0	1	0	0
P2	0	0	0	0	0	1	0	0
P3	0	0	1	0	0	17	0	0
P4	0	0	0	0	6	0	0	0
PAR	1,441	6	47	336	5	16,299	165	43
PEN	0	0	0	1	0	31	0	2
PH6	0	0	0	0	0	1	0	0
Q1	0	0	0	5	0	1	0	0
R1	0	12	3	1	4	27	0	4
R2	0	7	5	0	0	11	0	1
R86	0	0	0	0	0	5	0	0
RAD	0	0	0	0	0	5	0	0
RE	3	0	7	20	0	1,596	16	0
RE1	0	0	0	0	0	41	0	0
RE5	0	0	0	0	0	618	0	0
RE6	0	0	0	0	0	27	0	0
RE7	0	0	0	0	0	1	0	0
REF	0	0	0	0	0	0	1	0
REP	0	0	0	0	0	13	0	0
RHT	0	0	0	0	0	2	0	0
S1	0	0	0	2	0	9	2	0

Immigration Status at Filing	Afghanistan	Burma	Cameroon	El Salvador	Ethiopia	Haiti	Honduras	Nepal
SL6	0	0	0	0	0	1	0	0
SQ1	1	0	0	0	0	0	0	0
SR1	0	0	0	0	0	1	0	0
ST	0	0	0	1	0	18	3	0
SU6	0	0	0	0	0	0	0	1
T1	0	0	0	5	0	2	1	0
T2	0	0	0	0	0	1	0	0
T3	0	0	0	0	0	1	0	0
T4	1	0	0	0	0	0	0	0
T5	0	0	0	1	0	0	1	0
TC1	0	0	1	0	0	5	0	0
TD	0	0	0	1	0	5	0	0
TRM	0	0	0	0	0	5	0	0
U1	0	0	1	10	0	3	3	1
U2	0	0	0	1	0	2	0	0
U4	0	0	0	3	0	0	3	0
UN	439	414	1,093	221,709	329	110,645	68,995	8,994
V1	0	0	0	1	0	7	0	0
V2	0	0	0	0	0	6	0	0
W16	0	0	0	0	0	6	0	0
W26	0	0	0	0	0	3	0	0
WB	0	0	0	1	0	7	1	1
WT	0	0	0	20	0	51	6	2
XB3	0	0	0	0	0	1	0	0
Z11	0	0	1	0	0	2	0	0
Z66	0	0	0	0	0	1	0	0
Z83	0	0	0	0	0	1	0	0
999	9	11	121	0	84	5,109	0	7

Data Source: Computer Linked Application Information Management System (CLAIMS) and USCIS Electronic Immigration System (USCIS ELIS). Prior immigration status is self-reported by TPS beneficiaries on Form I-821, Application for Temporary Protected Status.
Notes: Class of Admission Code is based upon self-reported information appeared on TPS application form. At the time of filing for TPS, many applicants report that they cannot recall their immigration status. Immigration status, or lack of status, does not impact eligibility for TPS. See INA § 244(a)(5).

Table No. 2: Nicaragua, Somalia, South Sudan, Sudan, Ukraine, Venezuela, Yemen

Immigration Status at Filing	Nicaragua	Somalia	South Sudan	Sudan	Syria	Ukraine	Venezuela	Yemen
A1	0	0	10	8	2	13	34	6
A12	0	0	0	0	0	5	89	1
A2	0	1	2	3	0	20	4	7
A3	0	0	0	0	0	0	1	1
A32	0	0	0	0	0	0	1	0
A38	0	0	0	0	0	0	1	0
AA8	0	0	0	0	0	0	3	0
ABS	0	0	0	3	2	54	333	5
AO	0	2	0	6	11	72	21,898	10
AS	3	63	12	171	937	1,901	106,200	241
AS1	0	0	0	1	1	1	183	0
AS2	0	0	0	0	2	8	82	0
AS3	0	0	0	0	2	2	103	0
AS6	0	1	0	0	1	6	177	1
AS7	0	0	0	0	0	5	118	0
AS8	0	0	0	1	1	4	156	0
ASR	0	0	0	0	0	0	2	0
ASY	0	4	1	9	1	28	326	2
AY	0	0	0	1	3	12	77	0
B1	24	0	1	12	30	183	298	8
B11	0	0	0	0	0	1	0	0
B12	0	0	0	0	0	0	1	0
B2	93	4	4	59	397	4,678	10,491	91
B21	0	0	0	0	0	4	1	0
B22	0	0	0	0	0	0	6	0
B24	0	0	0	0	0	1	3	0
B26	0	0	0	0	0	0	2	0
B27	0	0	0	0	0	0	2	0
B29	0	0	0	0	0	0	1	0
B31	0	0	0	0	0	0	1	0
C1	2	0	0	0	0	6	2	0
C2	0	0	0	0	0	1	1	0
C21	0	0	0	0	0	2	0	0
C24	0	0	0	0	0	0	2	0
C26	0	0	0	0	0	0	3	0
C33	0	0	0	0	0	0	37	0
C4	1	0	0	0	0	0	1	0
C57	0	0	0	0	0	0	1	0
CF1	0	0	0	0	0	0	1	0
CF2	0	0	0	0	0	0	1	0

Immigration Status at Filing	Nicaragua	Somalia	South Sudan	Sudan	Syria	Ukraine	Venezuela	Yemen
CP	0	0	0	0	0	0	3	0
CR1	0	0	0	0	0	5	4	0
CR6	0	0	0	0	0	2	110	2
CR7	0	0	0	0	0	0	21	0
CU6	0	0	0	0	0	0	2	0
CU7	0	0	0	0	0	0	18	0
CX2	0	0	0	0	0	0	1	0
CX6	0	0	0	0	0	0	1	0
CX8	0	0	0	0	0	0	9	0
D1	0	0	0	0	0	2	1	0
DA	4	0	0	2	2	21	22	0
DAS	0	0	0	0	0	1	10	0
DE	0	0	0	0	0	1	0	0
DED	0	0	0	0	0	0	63	0
DT	1	0	0	0	0	2,352	61	1
DT2	0	0	0	0	0	1	0	0
DV1	0	0	0	0	0	0	1	0
DV6	0	0	0	0	0	0	12	0
DV7	0	0	0	0	0	0	7	0
DV8	0	0	0	0	0	0	5	0
E1	0	0	0	0	0	1	3	0
E10	0	0	0	0	0	0	8	0
E11	0	0	0	0	0	0	5	0
E14	0	0	0	0	0	0	4	0
E15	0	0	0	0	0	0	2	0
E16	0	0	0	0	0	0	5	0
E18	0	0	0	0	0	0	5	0
E19	0	0	0	0	0	0	5	0
E2	0	0	0	0	1	35	1,000	0
E21	0	0	0	0	0	0	3	0
E22	0	0	0	0	0	1	4	0
E23	0	0	0	0	0	0	8	0
E26	0	0	0	0	0	2	21	0
E27	0	0	0	0	0	1	20	0
E28	0	0	0	0	0	0	14	0
E3	0	0	0	0	0	0	2	0
E30	0	0	0	0	0	0	19	0
E31	0	0	0	0	0	0	1	0
E32	0	0	0	0	0	0	1	0
E34	0	0	0	0	0	0	1	0
E36	0	0	0	0	0	0	9	0
E37	0	0	0	0	0	0	14	0

Immigration Status at Filing	Nicaragua	Somalia	South Sudan	Sudan	Syria	Ukraine	Venezuela	Yemen
E39	0	0	0	0	0	0	17	0
E3D	0	0	0	0	0	0	1	0
EB1	0	0	0	0	0	2	12	0
EB2	0	0	0	0	0	10	70	0
EB3	0	0	0	0	0	0	6	0
EB5	0	0	0	0	0	0	4	0
EF	0	0	0	0	0	0	5	0
EP	0	0	0	0	0	0	1	0
ERF	0	0	0	0	0	1	4	0
ERP	0	0	0	0	0	0	1	0
EW0	0	0	0	0	0	0	3	0
EW8	0	0	0	0	0	0	5	0
EW9	0	0	0	0	0	0	2	0
EWI	170	9	0	3	21	78	466	4
F1	3	9	19	130	138	837	2,931	245
F11	0	0	0	0	0	1	2	0
F16	0	0	0	0	0	1	0	0
F2	1	0	0	13	23	98	513	41
F21	0	0	0	0	0	1	0	0
F24	0	0	0	0	0	0	3	0
F26	0	0	0	0	0	0	5	0
F27	0	0	0	0	0	0	3	0
F29	0	0	0	0	0	0	1	0
F37	0	0	0	0	0	0	1	0
F41	0	0	0	0	0	1	2	0
F46	0	0	0	0	0	2	0	0
FX2	0	0	0	0	0	0	1	0
FX6	0	0	0	0	0	0	3	0
FX7	0	0	0	0	0	0	2	0
G1	0	0	0	7	4	0	4	6
G2	0	0	0	0	0	0	0	11
G4	0	0	0	1	1	6	45	3
G5	1	0	0	0	0	0	3	0
GB	0	0	0	0	0	0	3	0
GMT	0	0	0	0	0	0	2	0
H1B	0	0	0	37	141	88	333	6
H2	2	0	0	0	0	1	3	0
H2A	0	0	0	0	0	51	0	0
H2B	1	0	0	0	0	268	1	0
H4	0	0	0	14	49	67	178	7

Immigration Status at Filing	Nicaragua	Somalia	South Sudan	Sudan	Syria	Ukraine	Venezuela	Yemen
HC9	0	0	0	0	0	0	1	0
I1	0	0	0	0	0	2	1	0
I53	0	0	0	0	0	0	2	0
I58	0	0	0	0	0	0	1	0
IB0	0	0	0	0	0	2	1	0
IB1	0	0	0	0	0	1	4	0
IB5	0	0	0	0	0	0	1	0
IB6	0	0	0	0	0	0	6	0
IB7	0	0	0	0	0	0	1	0
IH9	0	0	0	0	0	0	1	0
IJ	0	0	0	2	9	50	3,231	1
IR0	0	0	0	0	0	1	39	0
IR1	0	1	0	0	0	8	28	0
IR5	0	0	0	0	0	0	8	0
IR6	0	0	0	0	1	1	54	0
IR7	0	0	0	0	0	0	8	0
IW1	0	0	0	0	0	0	1	0
IW6	0	0	0	0	0	0	2	0
J1	4	0	2	33	60	312	184	21
J2	0	0	0	11	22	32	89	11
J2S	0	0	0	0	0	1	3	0
K1	0	0	0	1	9	17	4	0
K2	0	0	0	0	4	6	2	0
K3	0	0	0	0	1	6	16	0
K4	0	0	0	0	0	0	2	1
L1	0	0	0	0	0	6	40	1
L1A	0	0	0	0	1	8	53	1
L1B	0	0	0	1	1	33	26	0
L2	0	0	0	0	2	36	188	1
L2S	0	0	0	0	2	15	10	1
LB2	0	0	0	0	0	0	2	0
M1	0	0	0	5	2	4	7	4
M83	0	0	0	0	0	1	0	0
N53	0	0	0	0	0	0	1	0
O1	0	0	0	0	1	30	177	0
O2	0	0	0	0	0	8	45	0
O3	0	0	0	0	1	14	180	0
OP	0	0	0	0	0	0	2	0
OTHER	102	30	33	106	727	4,982	52,128	318
P1	0	0	0	1	0	11	97	0

Immigration Status at Filing	Nicaragua	Somalia	South Sudan	Sudan	Syria	Ukraine	Venezuela	Yemen
P1A	0	0	1	0	0	0	7	0
P3	0	0	0	0	1	3	2	0
P4	0	0	0	0	0	4	55	0
PAR	5	11	0	10	71	4,131	641	8
PEN	0	2	0	0	0	14	1,537	0
R1	1	0	0	0	0	17	64	0
R2	2	0	0	0	2	19	54	1
RE	4	0	0	0	3	7	31	1
RE1	0	0	0	0	0	5	0	0
RE5	0	0	0	0	0	0	1	0
RE6	0	0	0	0	0	2	0	0
REF	1	0	0	0	0	0	0	0
REP	0	0	0	0	0	0	5	0
SD6	0	0	0	0	0	0	2	0
SD7	0	0	0	0	0	0	1	0
SD8	0	0	0	0	0	0	3	0
SL6	0	0	0	0	0	0	1	0
SR1	0	0	0	0	0	0	3	0
SR2	0	0	0	0	0	0	2	0
SR6	0	0	0	0	0	0	3	0
SU6	0	0	0	0	0	0	1	0
T2	0	0	0	0	0	0	0	1
T3	0	0	0	0	0	0	1	0
T51	0	0	0	0	0	0	3	0
T52	0	0	0	0	0	0	2	0
T53	0	0	0	0	0	0	2	0
TD	0	0	0	1	0	2	8	0
TN	0	0	0	1	0	0	0	0
TR6	0	0	0	0	0	1	4	0
TRM	0	0	0	0	0	1	2	0
U1	0	0	0	0	0	1	5	0
U2	0	0	0	0	0	0	1	0
UHP	0	0	0	0	0	1,078	0	0
UN	3,616	414	59	589	3,384	7,478	68,066	1,164
V1	0	0	0	0	0	0	2	0
V2	0	0	0	0	0	1	1	0
W26	0	0	0	0	0	1	0	0
WB	0	0	0	0	2	0	21	0
WT	0	0	0	0	4	20	447	2
XB3	0	0	0	0	0	0	2	0

Immigration Status at Filing	Nicaragua	Somalia	South Sudan	Sudan	Syria	Ukraine	Venezuela	Yemen
Z15	0	0	0	0	0	0	1	0
Z57	0	0	0	0	0	0	1	0
999	0	11	2	18	62	412	9,728	34

Data Source: Computer Linked Application Information Management System (CLAIMS) and USCIS Electronic Immigration System (USCIS ELIS). Prior immigration status is self-reported by TPS beneficiaries on Form I-821, Application for Temporary Protected Status.
Notes: Class of Admission Code is based upon self-reported information appeared on TPS application form. At the time of filing for TPS, many applicants report that they cannot recall their immigration status. Immigration status, or lack of status, does not impact eligibility for TPS. See INA § 244(a)(5).

Appendix B: Immigration Status Codes[167]

Code	Description
A1	AMBASSADORS, PUBLIC MINISTERS, CAREER DIPLOMATIC OR CONSULAR OFFICERS AND THEIR FAMILIES
A12	CHILDREN OF A11 OR A16, NEW ARRIVALS
A17	CHILDREN OF A11 OR A16, ADJUSTMENTS
A2	OTHER FOREIGN GOVERNMENT OFFICIALS OR EMPLOYEES AND THEIR FAMILIES
A3	ATTENDANTS, SERVANTS, OR PERSONAL EMPLOYEES OF A1 AND A2 AND THEIR FAMILIES
A32	SPOUSES OF A31 OR A36, NEW ARRIVALS
A33	CHILDREN OF A31 OR A36, SUBJECT TO COUNTRY LIMITS, NEW ARRIVALS
AA2	SPOUSES OF AA1 OR AA6, NEW ARRIVALS
AA3	CHILDREN OF AA1 OR AA6, NEW ARRIVALS
AA6	NATIVES OF CERTAIN ADVERSELY AFFECTED FOREIGN STATES, ADJUSTMENTS
AA8	CHILDREN OF AA1 OR AA6, ADJUSTMENTS
ABD	ABANDONMENT OF RESIDENCY
ABS	ABANDONMENT OF STATUS
AO	ASYLUM APPLICANT W/O WORK AUTHORIZATION
AS	ASYLUM APPLICANT W/ WORK AUTHORIZATION
AS1	APPROVED PRIMARY ASYLEE
AS2	APPROVED SPOUSE ASYLEE
AS3	APPROVED CHILD ASYLEE
AS6	ASYLEES
AS7	SPOUSES OF AS6
AS8	CHILDREN OF AS6
ASR	ASYLUM STATUS REVOKED
ASY	ASYLEES
AY	ASYLEES
B1	TEMPORARY VISITORS FOR BUSINESS
B11	UNMARRIED SONS/DAUGHTERS OF U.S. CITIZENS, NEW ARRIVALS, SELF PETITIONING
B12	CHILDREN OF B11 OR B16, NEW ARRIVALS
B16	UNMARRIED SONS/DAUGHTERS OF U.S. CITIZENS, ADJUSTMENTS, SELF PETITIONING
B1B	PERSONAL/DOMESTIC SERVANT OF U.S. CITIZENS
B2	TEMPORARY VISITORS FOR PLEASURE
B21	SPOUSES OF ALIEN RESIDENTS, SUBJECT TO COUNTRY LIMITS, NEW ARRIVALS, SELF PETITIONING
B22	CHILDREN OF ALIEN RESIDENTS, SUBJECT TO COUNTRY LIMITS, NEW ARRIVALS, SELF PETITIONING
B23	CHILDREN OF B21, B22, B26, OR B27, SUBJECT TO COUNTRY LIMITS, NEW ARRIVALS
B24	UNMARRIED SONS/DAUGHTERS OF ALIEN RESIDENTS, SUBJECT TO COUNTRY LIMITS, NEW ARRIVALS, SELF PETITIONING
B25	CHILDREN OF B24 OR B29, SUBJECT TO COUNTRY LIMITS, NEW ARRIVALS

[167] This reference table of Immigration Status Codes includes both current codes and previously used historical codes, which are reflected in this document, Section 3.2: Number and Prior Immigration Status of TPS Beneficiaries During CY 2023. CLAIMS data, which USCIS reviewed to compile this TPS CY 2023 Congressional Report, contains references to both current and historical data codes.

Code	Description
B26	SPOUSES OF ALIEN RESIDENTS, SUBJECT TO COUNTRY LIMITS, ADJUSTMENTS, SELF PETITIONING
B27	CHILDREN OF ALIEN RESIDENTS, SUBJECT TO COUNTRY LIMITS, ADJUSTMENTS, SELF PETITIONING
B29	UNMARRIED SONS/DAUGHTERS OF ALIEN RESIDENTS, SUBJECT TO COUNTRY LIMITS, ADJUSTMENTS, SELF PETITIONING
B31	MARRIED SONS/DAUGHTERS OF U.S. CITIZENS, NEW ARRIVALS, SELF PETITIONING
B32	SPOUSES OF B31 OR B36, NEW ARRIVALS
B33	CHILDREN OF B31 OR B36, SUBJECT TO COUNTRY LIMITS, NEW ARRIVALS
B36	MARRIED SONS/DAUGHTERS OF U.S. CITIZENS, ADJUSTMENTS, SELF PETITIONING
BC1	BROADCAST (IBCB OF BBG) EMPLOYEES, NEW ARRIVALS
BCC	BORDER CROSSER CARD(I-586) APPROVED
BCD	BORDER CROSSING CARD DENIED
BX2	CHILDREN OF ALIEN RESIDENTS, EXEMPT FROM COUNTRY LIMITS, NEW ARRIVALS, SELF PETITIONING
C1	ALIENS IN CONTINUOUS AND IMMEDIATE TRANSIT THROUGH THE U.S.
C2	ALIENS IN TRANSIT TO THE UNITED NATIONS
C21	SPOUSES OF ALIEN RESIDENTS, SUBJECT TO COUNTRY LIMITS, NEW ARRIVALS, CONDITIONAL
C22	CHILDREN OF ALIEN RESIDENTS, SUBJECT TO COUNTRY LIMITS, NEW ARRIVALS, CONDITIONAL
C24	UNMARRIED CHILDREN OF ALIEN RESIDENTS, SUBJECT TO COUNTRY LIMITS, NEW ARRIVALS, CONDITIONAL
C26	SPOUSES OF ALIEN RESIDENTS, SUBJECT TO COUNTRY LIMITS, ADJUSTMENTS, CONDITIONAL
C27	CHILDREN OF ALIEN RESIDENTS, SUBJECT TO COUNTRY LIMITS, ADJUSTMENTS, CONDITIONAL
C29	UNMARRIED CHILDREN OF ALIEN RESIDENTS, SUBJECT TO COUNTRY LIMITS, ADJUSTMENTS, CONDITIONAL
C3	FOREIGN GOVERNMENT OFFICIALS, THEIR SPOUSES, CHILDREN, AND ATTENDANTS IN TRANSIT
C31	MARRIED SONS/DAUGHTERS OF U.S. CITIZENS, NEW ARRIVALS, CONDITIONAL
C32	SPOUSES OF C31 OR C36, NEW ARRIVALS, CONDITIONAL
C33	CHILDREN OF C31 OR C36, SUBJECT TO COUNTRY LIMITS, NEW ARRIVALS, CONDITIONAL
C4	TRANSIT WITHOUT A VISA
C57	SPOUSES OF C51 OR C56, ADJUSTMENTS, CONDITIONAL
CB1	SPOUSES OF LEGALIZED ALIENS, NEW ARRIVALS, CONDITIONAL
CB2	CHILDREN OF CB1 OR CB6, NEW ARRIVALS, CONDITIONAL
CB7	CHILDREN OF CB1 OR CB6, ADJUSTMENTS, CONDITIONAL
CF1	SPOUSES, ENTERED AS FIANCE(E), ADJUSTMENTS, CONDITIONAL
CF2	CHILDREN OF CF1, ADJUSTMENTS, CONDITIONAL
CH6	CUBAN HAITIAN ENTRANTS, ADJUSTMENTS (P.L. 99-603)
CP	PAROLEE (PUBLIC INTEREST-HEADQUARTERS)
CR1	SPOUSES, NEW ARRIVALS, CONDITIONAL
CR2	CHILDREN, NEW ARRIVALS, CONDITIONAL
CR6	SPOUSES, ADJUSTMENTS, CONDITIONAL
CR7	CHILDREN, ADJUSTMENTS, CONDITIONAL
CS2	CATHOLIC SOCIAL SERVS-NO EMP/AUTH
CU6	CUBAN REFUGEES (P.L. 89-732 OF 1966)

Code	Description
CU7	NON-CUBAN SPOUSES OR CHILDREN OF CUBAN REFUGEES
CW1	CNMI-ONLY TRANSITIONAL WORKERS
CW2	SPOUSES AND CHILDREN OF CW1
CX1	SPOUSES OF ALIEN RESIDENTS, EXEMPT FROM COUNTRY LIMITS, NEW ARRIVALS, CONDITIONAL
CX2	CHILDREN OF ALIEN RESIDENTS, EXEMPT FROM COUNTRY LIMITS, NEW ARRIVALS, CONDITIONAL
CX6	SPOUSES OF ALIEN RESIDENTS, EXEMPT FROM COUNTRY LIMITS, ADJUSTMENTS, CONDITIONAL
CX8	CHILDREN OF CX2 OR CX7, EXEMPT FROM COUNTRY LIMITS, ADJUSTMENTS, CONDITIONAL
D	CREWMEMBER (SEA OR AIR)
D1	29 DAYS OR LESS ON VES OR
DA	ADVANCE PAROLE-DISTRICT AUTHORIZED
DAS	DEFERRED ACTION STATUS
DE	DEFERRED INSPECTION
DED	DEFERED ENFORCED DEPARTURE
DHR	DENIAL HAITIAN REFUGEE APPLICATION
DT	PAROLEE (DISTRICT/POE AUTHORIZED)
DT1	NATIVES OF TIBET WHO CONTINUOUSLY RESIDED IN NEPAL OR INDIA (DISPLACED TIBETAN), NEW ARRIVALS
DT2	SPOUSES OF DT1 OR DT6, NEW ARRIVALS
DT3	CHILDREN OF DT1 OR DT6, NEW ARRIVALS
DV1	PRINCIPALS, NEW ARRIVALS
DV2	SPOUSES OF DV1 OR DV6, NEW ARRIVALS
DV6	PRINCIPALS, ADJUSTMENTS
DV7	SPOUSES OF DV1 OR DV6, ADJUSTMENTS
DV8	CHILDREN OF DV1 OR DV6, ADJUSTMENTS
E1	TREATY TRADERS AND THEIR SPOUSES AND CHILDREN
E10	CHILDREN OF E11, E12, E13, E16, E17, OR E18, ADJUSTMENTS
E11	ALIENS WITH EXTRAORDINARY ABILITY, NEW ARRIVALS
E14	SPOUSES OF E11, E12, E13, E16, E17, OR E18, NEW ARRIVALS
E15	CHILDREN OF E11, E12, E13, E16, E17, OR E18, NEW ARRIVALS
E16	ALIENS WITH EXTRAORDINARY ABILITY, ADJUSTMENTS
E18	MULTINATIONAL EXECUTIVES OR MANAGERS, ADJUSTMENTS
E19	SPOUSES OF E11, E12, E13, E16, E17, OR E18, ADJUSTMENTS
E2	TREATY INVESTORS AND THEIR SPOUSES AND CHILDREN
E21	PROFESSIONALS HOLDING ADVANCED DEGREES, NEW ARRIVALS
E22	SPOUSES OF E21 OR E26, NEW ARRIVALS
E23	CHILDREN OF E21 OR E26, NEW ARRIVALS
E26	PROFESSIONALS HOLDING ADVANCED DEGREES, ADJUSTMENTS
E27	SPOUSES OF E21 OR E26, ADJUSTMENTS
E28	CHILDREN OF E21 OR E26, ADJUSTMENTS
E3	AUSTRALIAN FREE TRADE AGREEMENT PRINCIPALS, SPOUSES AND CHILDREN
E30	CHILDREN OF E31, E32, E36, OR E37, ADJUSTMENTS
E31	SKILLED WORKERS, NEW ARRIVALS

Code	Description
E32	PROFESSIONALS WITH BACCALAUREATE DEGREES, NEW ARRIVALS
E34	SPOUSES OF E31, E32, E36, OR E37, NEW ARRIVALS
E36	SKILLED WORKERS, ADJUSTMENTS
E37	PROFESSIONALS WITH BACCALAUREATE DEGREES, ADJUSTMENTS
E39	SPOUSES OF E31, E32, E36, OR E37, ADJUSTMENTS
E3D	SPOUSE OR CHILD OF E3
E56	EMPLOYMENT CREATION, ADJUSTMENTS
EB1	EXTRAORD ABILITY, RESEARCHERS
EB2	PROF ADV DEGREES, EXCEPTIONAL
EB3	PROF, SKILLED, OTHER WORKERS
EB5	REG CTR APPLICANTS, IMMIG INV
EF	EXPEDITED REM. PEND. CREDIBLE FEAR
EP	EXPEDITED REMOVAL PENDING OTHER
ERF	EXPEDITED REM. PEND. CREDIBLE FEAR
ERP	EXPEDITED REMOVAL PENDING OTHER
EW0	CHILDREN OF EW3 OR EW8, ADJUSTMENTS
EW8	NEEDED UNSKILLED WORKERS, ADJUSTMENTS
EW9	SPOUSES OF EW3 OR EW8, ADJUSTMENTS
EWI	ENTRY WITHOUT INSPECTION
F1	ACADEMIC STUDENTS
F11	UNMARRIED SONS/DAUGHTERS OF U.S. CITIZENS, NEW ARRIVALS
F16	UNMARRIED SONS/DAUGHTERS OF U.S. CITIZENS, ADJUSTMENTS
F2	SPOUSES AND CHILDREN OF F1
F21	SPOUSES OF ALIEN RESIDENTS, SUBJECT TO COUNTRY LIMITS, NEW ARRIVALS
F22	CHILDREN OF ALIEN RESIDENTS, SUBJECT TO COUNTRY LIMITS, NEW ARRIVALS
F24	UNMARRIED SONS/DAUGHTERS OF ALIEN RESIDENTS, SUBJECT TO COUNTRY LIMITS, NEW ARRIVALS
F25	CHILDREN OF F24 OR F29, SUBJECT TO COUNTRY LIMITS, NEW ARRIVALS
F26	SPOUSES OF ALIEN RESIDENTS, SUBJECT TO COUNTRY LIMITS, ADJUSTMENTS
F27	CHILDREN OF ALIEN RESIDENTS, SUBJECT TO COUNTRY LIMITS, ADJUSTMENTS
F29	UNMARRIED SONS/DAUGHTERS OF ALIEN RESIDENTS, SUBJECT TO COUNTRY LIMITS, ADJUSTMENTS
F31	MARRIED SONS/DAUGHTERS OF U.S. CITIZENS, NEW ARRIVALS
F33	CHILDREN OF MARRIED SONS/DAUGHTERS OF U.S. CITIZENS, NEW ARRIVALS
F36	MARRIED SONS/DAUGHTERS OF U.S. CITIZENS, ADJUSTMENTS
F37	SPOUSES OF MARRIED SONS/DAUGHTERS OF U.S. CITIZENS, ADJUSTMENTS
F41	BROTHERS/SISTERS OF U.S. CITIZENS, NEW ARRIVALS
F46	BROTHERS/SISTERS OF U.S. CITIZENS, ADJUSTMENTS
F48	CHILDREN OF BROTHERS/SISTERS OF U.S. CITIZENS, ADJUSTMENTS
FX1	SPOUSES OF ALIEN RESIDENTS, EXEMPT FROM COUNTRY LIMITS, NEW ARRIVALS
FX2	CHILDREN OF ALIEN RESIDENTS, EXEMPT FROM COUNTRY LIMITS, NEW ARRIVALS
FX3	CHILDREN OF FX1, FX2, FX7, OR FX8, EXEMPT FROM COUNTRY LIMITS, NEW ARRIVALS
FX6	SPOUSES OF ALIEN RESIDENTS, EXEMPT FROM COUNTRY LIMITS, ADJUSTMENTS
FX7	CHILDREN OF ALIEN RESIDENTS, EXEMPT FROM COUNTRY LIMITS, ADJUSTMENTS

Code	Description
G1	PRINCIPALS OF RECOGNIZED FOREIGN GOVERNMENTS
G2	OTHER REPRESENTATIVES OF RECOGNIZED FOREIGN GOVERNMENTS
G4	INTERNATIONAL ORGANIZATION OFFICERS OR EMPLOYEES
G5	ATTENDANTS, SERVANTS, OR PERSONAL EMPLOYEES OF REPRESENTATIVES
GB	GUAM VISA WAIVER PROGRAM – TEMPORARY VISITORS FOR BUSINESS TO GUAM
GMT	GUAM - COMMONWEALTH OF NORTHERN MARIANA ISLANDS (CNMI) VISA WAIVER PROGRAM - TEMPORARY VISITORS FOR PLEASURE TO GUAM OR NORTHERN MARIANA ISLANDS
GT	GUAM VISA WAIVER PROGRAM – TEMPORARY VISITORS FOR PLEASURE TO GUAM
H1B	TEMPORARY WORKERS IN SPECIALTY OCCUPATIONS
H2	NONIMMIGRANT WORKER
H2A	AGRICULTURAL WORKERS
H2B	NONAGRICULTURAL WORKERS
H3	TRAINEES
H4	SPOUSES AND CHILDREN OF H1, H2, OR H3
HA6	HAITIAN ASYLUM APPLICANTS
HA8	CHILDREN OF HA6
HA9	UNMARRIED SONS/DAUGHTERS OF HA6
HB6	HAITIAN PAROLEES
HB8	CHILDREN OF HB6
HC6	HAITIAN CHILDREN WITHOUT PARENTS
HC9	UNMARRIED SONS/DAUGHTERS OF HC6
HD6	HAITIAN CHILDREN ORPHANED IN THE UNITED STATES
HH6	PAROLEES ADJUSTING UNDER THE HELP HAITI ACT OF 2010, ADJUSTMENTS
I1	REPRESENTATIVES OF FOREIGN INFORMATION MEDIA AND SPOUSES AND CHILDREN
I53	CHILDREN OF I51 OR I56, NEW ARRIVALS, CONDITIONAL
I58	CHILDREN OF I51 OR I56, ADJUSTMENTS, CONDITIONAL
IB0	PARENTS BATTERED OR ABUSED, OF U.S. CITIZENS, ADJUSTMENTS, SELF PETITIONING
IB1	SPOUSES, NEW ARRIVALS, SELF PETITIONING
IB2	CHILDREN, NEW ARRIVALS, SELF PETITIONING
IB5	PARENTS BATTERED OR ABUSED, OF U.S. CITIZENS, NEW ARRIVALS, SELF PETITIONING
IB6	SPOUSES, ADJUSTMENTS, SELF PETITIONING
IB7	CHILDREN, ADJUSTMENTS, SELF PETITIONING
IH9	CHILDREN TO BE ADOPTED UNDER THE HAGUE CONVENTION, ADJUSTMENTS
IJ	REFERRED TO IMMIGRATION JUDGE
IR0	PARENTS OF ADULT U.S. CITIZENS, ADJUSTMENTS
IR1	SPOUSES, NEW ARRIVALS
IR2	CHILDREN, NEW ARRIVALS
IR5	PARENTS OF ADULT U.S. CITIZENS, NEW ARRIVALS
IR6	SPOUSES, ADJUSTMENTS
IR7	CHILDREN, ADJUSTMENTS
IW1	SPOUSES, WIDOWS OR WIDOWERS, NEW ARRIVALS
IW6	SPOUSES, WIDOWS OR WIDOWERS, ADJUSTMENTS
J1	EXCHANGE VISITORS
J2	SPOUSES AND CHILDREN OF J1

Code	Description
K1	FIANCÉ(E)S OF U.S. CITIZENS
K2	CHILDREN OF K1
K3	SPOUSES OF U.S. CITIZENS, VISA PENDING
K4	CHILDREN OF U.S. CITIZENS, VISA PENDING
L1	INTRACOMPANY TRANSFEREES
L2	SPOUSES AND CHILDREN OF L1
L2S	SPOUSE OF L-1
LB2	CHILDREN OF LB1 OR LB6, NEW ARRIVALS
M1	VOCATIONAL STUDENTS
M2	SPOUSES AND CHILDREN OF M1
M83	REFUGEE ESCAPEES PREVIOUSLY ADMITTED FOR LAWFUL PERMANENT RESIDENT STATUS, ADJUSTMENTS
N1	NATO ADMISSION
O1	WORKERS WITH EXTRAORDINARY ABILITY OR ACHIEVEMENT
O2	WORKERS ACCOMPANYING AND ASSISTING IN PERFORMANCE OF O1 WORKERS
O3	SPOUSES AND CHILDREN OF O1 AND O2
OAR	OPERATION ALLIED REFUGEE - PAROLE
OP	PAROLEE-OVERSEAS OR SUBOFFICE AUTH
OTHER	OTHER
P1	INTERNATIONALLY RECOGNIZED ATHLETES OR ENTERTAINERS
P1A	ATHLETE AT SPECIFIC COMPETITION
P2	ARTISTS OR ENTERTAINERS IN RECIPROCAL EXCHANGE PROGRAMS
P3	ARTISTS OR ENTERTAINERS IN CULTURALLY UNIQUE PROGRAMS
P4	SPOUSES AND CHILDREN OF P1, P2, OR P3
PAR	PAROLEE
PEN	PENDING LPR
PH6	PAROLEES, POLISH/HUNGARIAN
Q1	WORKERS IN INTERNATIONAL CULTURAL EXCHANGE PROGRAMS
R1	WORKERS IN RELIGIOUS OCCUPATIONS
R2	SPOUSES AND CHILDREN OF R1
R86	REFUGEE PAROLEES (P.L. 95-412 OF 1978)
RAD	REFUGEE APPLICANT DENIED
RE	REFUGEE
RE1	REFUGEE
RE5	HAITIAN WITH REFUGEE STATUS IN U.S.
RE6	OTHER REFUGEES (P.L. 96-212 REFUGEE ACT OF 1980)
REF	REFUGEE
REP	REFUGEES PENDING
S1	TEMP SAW 3 YEARS PRIOR MAY 1, 1986
SD6	MINISTERS, ADJUSTMENTS
SL6	JUVENILE COURT DEPENDENTS, ADJUSTMENTS
SQ1	CERTAIN IRAQIS AND AFGHANS EMPLOYED BY U.S. GOVERNMENT, NEW ARRIVALS
SR1	RELIGIOUS WORKERS, NEW ARRIVALS
SR2	SPOUSES OF SR1 OR SR6, NEW ARRIVALS

Code	Description
SR6	RELIGIOUS WORKERS, ADJUSTMENTS
ST	STOWAWAY
SU2	SPOUSES OF SU6, NEW ARRIVALS
SU6	ADJUSTMENT OF U1 NONIMMIGRANT
T1	VICTIM OF A SEVERE FORM OF TRAFFICKING IN PERSONS
T2	SPOUSE OF T1
T3	CHILD OF T1
T5	UNMARRIED SIBLING UNDER AGE 18 OF T1
T51	EMPLOYMENT CREATION, TARGETED AREA, NEW ARRIVALS, CONDITIONAL
T52	SPOUSES OF T51 OR T56, NEW ARRIVALS, CONDITIONAL
T53	CHILDREN OF T51 OR T56, NEW ARRIVALS, CONDITIONAL
TC1	COND. SPOUSE OF USC-DENIED
TD	SPOUSES AND CHILDREN OF TN
TN	NORTH AMERICAN FREE TRADE AGREEMENT (NAFTA) PROFESSIONAL WORKERS
TR6	CONDITIONALSPOUSE OF USC-DENIED
TRM	CONDITIONAL RESIDENT STATUS TERMINATED
U1	VICTIM OF CRIMINAL ACTIVITY
U2	SPOUSE OR U1
U4	PARENT OF U1 UNDER 21 YEARS OF AGE
UHP	UKRAINIAN HUMANITARIAN PAROLE
UN	UNKNOWN OR NOT REPORTED
V1	SPOUSES OF PERMANENT RESIDENTS, VISA PENDING
V2	CHILDREN OF PERMANENT RESIDENTS, VISA PENDING
W16	ENTERED WITHOUT INSPECTION BEFORE 1/1/82
W26	ENTERED AS NONIMMIGRANT AND OVERSTAYED VISA BEFORE 1/1/82
WB	VISA WAIVER PROGRAM – TEMPORARY VISITORS FOR BUSINESS
WT	VISA WAIVER PROGRAM – TEMPORARY VISITORS FOR PLEASURE
XB3	PRESUMED LAWFULLY ADMITTED FOR PERMANENT RESIDENCE
Z11	PREFERENCE OR NON-PREFERENCE IMMIGRANTS (OTHER THAN CREWMEN)
Z15	SALVADORAN, GUATEMALAN AND FORMER SOVIET BLOC COUNTRY NATIONALS (NACARA SECTION 203, P.L. 105-100 OF 1997)
Z57	CREWMEN WHO ENTERED ON OR BEFORE JUNE 30, 1964, AND ARE PREFERENCE OR NON-PREFERENCE IMMIGRANTS
Z66	ENTERED 6/29/40 - 1/1/72, SECTION 249, P.L. 89-236, ADJUSTMENTS
Z83	FOREIGN GOVERNMENT OFFICIAL WHO IS IMMEDIATE RELATIVE OF U.S. CITIZEN OR SPECIAL IMMIGRANT
999	ALIEN AWAITING DECISION OF ASYLUM

Data Source: This reference table of Immigration Status Codes includes both current codes and previously used historical codes, which are reflected in this document, Section 3.2: Number and Prior Immigration Status of TPS Beneficiaries During CY 2023. CLAIMS data, which USCIS reviewed to compile this TPS CY 2023 Congressional Report, contains references to both current and historical data codes.